

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSALINO RAMOS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.:26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants,
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiffs designate
Bronx County as the
Place of trial.

The basis of venue is:

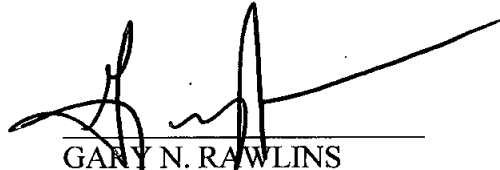
Plaintiff Designates Bronx County
Pursuant to CPLR § 509

County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, while service is made by delivery upon you personally within the state, or, within 30 days after completion of service while service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
August 27, 2015


GARY N. RAWLINS
Attorney for Plaintiff
ROSALINO RAMOS
300 Cadman Plaza West
One Pierrepont Plaza
12th Floor
Brooklyn, NY 11201
Tel : (212) 926-0050
Fax (347)332-1592

RECEIVED

2015 SEP 25 PM 4:26

CLERK
COUNTY CLERK
BRONX COUNTY

TO:

Zachary Carter
Attorney for Defendant
CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT
New York City Law Department
100 Church Street
New York, New York 10007

OFFICER PETER WONG SHIELD NO.:26984
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007

OFFICER JASON RUBENSTEIN SHIELD NO.: 24550
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007

OFFICER DANIEL MENSING
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007

SERGEANT RICHARD JONES SHIELD NO.: 04142
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSALINO RAMOS

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

Index No.:

Date Purchased:

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.:26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants,

-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified
Complaint, respectfully alleges, upon information and belief that:

1. The Plaintiff, **ROSALINO RAMOS**, at all times herein mentioned was and still is a resident of the County of New York and the State of New York.
2. At all times herein mentioned Defendant **THE CITY OF NEW YORK** ("NYC"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff **ROSALINO RAMOS** upon **NYC** in accordance with Section 50-e of the General Municipal Law.
4. That notice of claim was served on September 18, 2014.

5. Within ninety days of (90) of August 23, 2014, a notice of claim in writing was served on behalf of Plaintiff **ROSALINO RAMOS** upon NYC, in accordance with Section 50-e of the General Municipal Law.

6. Prior to the commencement of this action, notice of the intention of Plaintiff **ROSALINO RAMOS** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon NYC.

7. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.

8. A hearing pursuant to General Municipal Law 50-h was held on November 19, 2014.

9. This action is commenced within one (1) year and ninety (90) days from August 23, 2014.

10. At all relevant times, Defendants were members of the **NEW YORK POLICE DEPARTMENT**, and were employees of Defendant **CITY**, and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.

11. The individual Defendants were acting pursuant to the authority conferred upon them by Defendant police department and Defendant municipality.

12. At all times herein mentioned, Defendants **NYC and NEW YORK POLICE DEPARTMENT** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

13. Defendants NYC are vicariously liable for the acts of Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142.**

14. By reason of the foregoing, Plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS

15. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

16. Plaintiff **ROSALINO RAMOS** sues all Defendants in their capacities.

17. On or about August 23, 2014, at approximately 12:25am, at 334 West Houston Street in Manhattan, Plaintiff **ROSALINO RAMOS** was filming his cousin being arrested for driving while intoxicated, even though he was the designated driver.

Plaintiff was charged with obstructing government administration, disorderly conduct, resisting arrest and brought to the 7th Precinct. From the precinct, he was transported to Bellevue Hospital where he was treated after passing out due to the handcuffs being too tight and never loosened despite his requests. Plaintiff was then taken to Central Bookings and again tightly handcuffed where he spent 24 hours before being released. All charges against Mr. Ramos were dismissed on May 26, 2015.

18. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

19. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **ROSALINO RAMOS**.

20. Prior to August 23, 2014, the City of New York and the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Ramos' rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrest as possible without concern for the validity of those arrests. The respondent's agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein. **ROSALINO RAMOS** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the respondents involved individually and jointly, their agents, servants

employees and/or licensees in the control, supervision, hiring and training of the officers and employees who were deliberately indifferent to Mr. Ramos' civil rights and rights under his employment contract.

21. Throughout this period, Plaintiff **ROSALINO RAMOS** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

22. Defendants, their officers, agents, servants and/or employees were responsible for plaintiff **ROSALINO RAMOS** false arrest, detention and imprisonment during this period of time.

23. Throughout plaintiff **ROSALINO RAMOS** imprisonment, defendants, and their offices, agents servants, and employees refused to give plaintiff an opportunity to establish his innocence.

24. Defendants intended to and did in fact confine Plaintiff **ROSALINO RAMOS** and physically prevented him from leaving their custody and kept him under the supervision without access to his freedom, family and home.

25. Plaintiff **ROSALINO RAMOS** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

26. At all relevant times, the false arrest and imprisonment of plaintiff **ROSALINO RAMOS** was without right or privilege, and without probable or reasonable cause.

27. At all relevant times, the false arrest, malicious prosecution, imprisonment of Plaintiff **ROSALINO RAMOS** were against his will.

28. All of the foregoing occurred without fault or provocation on the part of plaintiff **ROSALINO RAMOS**.

29. As consequence of Defendants' wrongful actions, negligent behavior, and violations of **Mr. RAMOS'** FEDERAL CONSTITUTIONAL RIGHTS, Plaintiff **ROSALINO**

RAMOS :

- a. was deprived of his freedom;
- b. was incarcerated and suffered incarceration;
- c. was subject to great fear, terror personal humiliation degradation, ridicule and disgrace;
- d. was subjected to great physical, mental and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which he incurred;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. was permanently impaired as to his earning ability;
- h. And continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants their agents, employees, and servants.

30. Defendants acted knowingly, willfully, wantonly, recklessly unlawfully, and in unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward his.

31. By reason of the foregoing, plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE SECOND CAUSE OF ACTION
FOR FALSE ARREST AS AGAINST ALL DEFENDANTS

32. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

33. Plaintiff **ROSALINO RAMOS** sues all Defendants in their individual capacities.

34. On August 23, 2014, Plaintiff **ROSALINO RAMOS** was wrongfully, unlawfully and unjustifiably arrested, detained and deprived of his liberty against his will, and was imprisoned by Defendants, their officers, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

35. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant.

36. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **ROSALINO RAMOS**.

37. On or about August 23, 2014, at approximately 12:25am, at 334 West Houston Street in Manhattan, Plaintiff **ROSALINO RAMOS** was filming his cousin being arrested for driving while intoxicated, even though he was the designated driver. Plaintiff was charged with obstructing government administration, disorderly conduct, resisting arrest and brought to the 7th Precinct. From the precinct, he was transported to Bellevue Hospital where he was treated after passing out due to the handcuffs being too tight and never loosened despite his requests. Plaintiff was then taken to Central Bookings and again tightly handcuffed where he spent 24 hours before being released. All charges against Mr. Ramos were dismissed on May 26, 2015.

38. Plaintiff **ROSALINO RAMOS** was unexpectedly and forcefully arrested, although he did not resist.

39. Thereafter, Plaintiff **ROSALINO RAMOS** was falsely arrested.

40. Throughout this period, Plaintiff **ROSALINO RAMOS** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

41. Defendants, their officers, agents, servant and/or employees were responsible for Plaintiff **ROSALINO RAMOS** arrest, detention and imprisonment during this period of time.

42. Throughout Plaintiff **ROSALINO RAMOS** imprisonment, Defendants, and their officers, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence.

43. Defendants intended to and did in fact confine Plaintiff **ROSALINO RAMOS** and physically prevented his from leaving their custody and kept him under the supervision without access to his freedom, family and home.

44. Plaintiff **ROSALINO RAMOS** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

45. At all relevant times, the unlawful, wrongful and false arrest and imprisonment of Plaintiff **ROSALINO RAMOS** was without right or privilege, and unjustified and without probable or reasonable cause.

46. At no time did Defendants or their officers, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **ROSALINO RAMOS**.

47. On or about the time of Plaintiff **ROSALINO RAMOS** unlawful arrest, criminal charges were brought against him without probable cause.

48. At all relevant times, the false, unlawful, and improper arrest and imprisonment of Plaintiff **ROSALINO RAMOS** was forcible and against his will.

49. All of the foregoing occurred without fault or provocation on the part of Plaintiff **ROSALINO RAMOS**.

50. As consequences of Defendants' wrongful actions, negligent behavior, and violation of New York State and common laws, Plaintiff **ROSALINO RAMOS**:

- a. was deprived of his freedom;
- b. was incarcerated and suffered incarceration;
- c. was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;

- d. was subjected to great physical, mental, and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which him incurred;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. was permanently impaired as to his earning ability;
- h. And continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

51. Defendants acted knowingly, willfully, wantonly, recklessly, unlawfully, and in unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward his.

52. By reason of the foregoing, Plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO
INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

53. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

54. As a result of the above actions, Defendants NYC, individually, and/or vicariously, by and through its agents, servants and /or employees, and, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **ROSALINO RAMOS** by Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142.**

55. As a result of the foregoing, Defendants NYC and **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** individually and and/or vicariously by and through their agents servants, and/or employees, displayed a deliberate indifference to Plaintiff **ROSALINO RAMOS** rights to be free from unreasonable searches and seizures and excessive use of force.

56. As a result of the foregoing, Defendants NYC individually and/or vicariously by and through its agents servants, and/or employees, including **NYPD** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

57. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION
AGAINST DEFENDANTS NYC

58. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraph above with full force and effect as if each were more fully set forth herein.

59. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **ROSALINO RAMOS** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY**.

60. Defendants **NYC**, at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as Defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

61. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants NYC negligently created and caused a situation while it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **ROSALINO RAMOS** of his Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

62. Defendants NYC knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

63. Defendants NYC were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

64. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants NYC and their agents, servants and/or employees, Plaintiff **ROSALINO RAMOS** suffered the afore-stated injuries.

65. Prior to August 23, 2014, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of Mr. Ramos' rights.

66. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.

67. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

68. As a result of the above described policies and customs, police officers of the City of New York, including the Defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

69. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein.

70. By reason of the foregoing, Plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

71. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

72. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, full body strip searching, failing to investigate, failure to advise to law, rule and regulations known to them, failing to heed Plaintiff **ROSALINO RAMOS** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

73. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **ROSALINO RAMOS** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

74. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **ROSALINO RAMOS** and injury to his name and reputation.

75. Said harm did in fact occur in this case, in that Plaintiff **ROSALINO RAMOS** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff has had to seek support and counseling within the family.

76. By reason of the foregoing, Plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SIXTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

77. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

78. Defendants' acts were reckless, willful, wanton, malicious, oppressive, and outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **ROSALINO RAMOS** well being, and were based on a lack of concern and ill-will towards Plaintiff.

79. Plaintiff **ROSALINO RAMOS** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff **ROSALINO RAMOS** demands judgment against the defendants as follows:

- a. On the First Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- b. On the Second Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;

- c. On the Third Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- d. On the Fourth Cause of Action against **THE CITY OF NEW YORK** all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- e. On the Fifth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- f. On the Sixth Cause of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- g. Together with costs, attorney's fees and disbursements of this action.
- h. Such other and further relief as to the Court may seem just and proper.

Dated: New York, New York
August 27, 2015



GARY N. RAWLINS
Attorney for Plaintiff
ROSALINO RAMOS

RAWLINS LAW, PLLC
300 Cadman Plaza West
One Pierrepont Plaza
12th Floor
Brooklyn, NY 11201
Tel : (212) 926-0050
Fax (347) 332-1592

TO:

Zachary Carter
Attorney for Defendant
CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT
New York City Law Department
100 Church Street
New York, New York 10007

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New York, NY 10007

SERGEANT RICHARD JONES SHIELD NO.: 04142
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK, COUNTY OF BRONX:

Rosalind Lamas, being duly sworn, says:

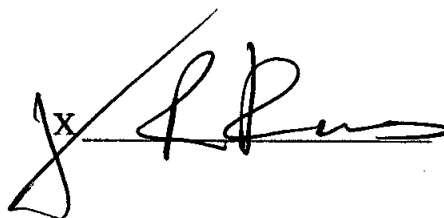
I am a Plaintiff in the action herein: I have read the annexed

COMPLAINT

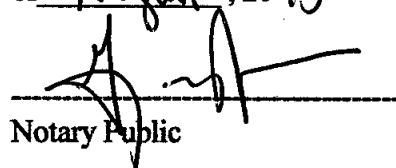
and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, NY

8/27/15



Sworn to before me this 27 day
of August, 20 15


Notary Public

PLEASE TAKE NOTICE

- ☐ That the within is a (certified) true copy of a
Entered in the office of the clerk of the within named court on

NOTICE OF ENTRY

- ☐ That an Order of which the within is a true copy will be presented for settlement to the Hon. _____ one of the judges of
the within named Court.

NOTICE OF SETTLEMENT

Dated:

STATE OF NEW YORK, COUNTY OF BRONX

The undersigned, an attorney admitted to practice on the courts of New York State

- ☐ Certification Certifies that the within
Has been compared by the undersigned with the original and found to be true and complete copy.
☐ Attorney's Shows deponent I The attorney(s) of record for the plaintiff In the within action; deponent has read the
Affirmation foregoing

And knows the contents thereof; the same is

True to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief,

And that as to those matters deponent believes it to be true. This verification is made by deponent and not by

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge area as follows:

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated:

Gary N. Rawlins

STATE OF NEW YORK, COUNTY OF BRONX

as:

- ☐ Individual The in the within action; deponent has read the
Verification foregoing and knows the contents thereof; the same is true to deponent's
own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to
those matters deponent believes it to be true
☐ Corporate The of
☐ Verification a corporation, in the within action; deponent has read the
foregoing and knows the contents thereof; and the same is true to
deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief,
and as to those matters deponent believes it to be true This verification is made by deponent because is a
corporation and deponent is an officer thereof.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Sworn to before me on 20

The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF BRONX as:

Gary Rawlins Being duly sworn deposes and says: deponent is not a party to the action

Is over 18 years of age and resides at BRONX County

- ☐ Affidavit of On , 2015 deponent served the within
service By efendants in this action, at The address designated by
Mail said attorney(s) for that purpose by depositing a true copy of same enclosed in a post-paid properly wrapper,
in—a post office—official depository under the exclusion care and custody of the United States Postal
Service within the State of New York.
☐ Affidavit of On , 2015 deponent served the within
service By Upon
Mail efendants in this action, The address designated by said attorney(s) for
that purpose by depositing a true copy of same enclosed in a post-paid properly wrapper, in—a post office—
official depository under the exclusion care and custody of the United States Postal Service within the State
of New York.

NOTARY

Gary Rawlins

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSALINO RAMOS,

Index No.

Plaintiffs,

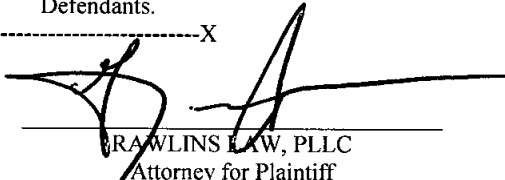
-against-

SUMMONS AND COMPLAINT

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.:26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants.

-----X


RAWLINS LAW, PLLC
Attorney for Plaintiff
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Zachary Carter
Attorney for Defendant
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New York, NY 10007

SERGEANT RICHARD JONES SHIELD NO.: 04142
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007
Service of a copy of the within is hereby admitted

Dated: _____

Attorney(s) for Defendant(s)

MAIL

L.R. REQUEST FOR JUDICIAL INTERVIEW

UCS-640 (7/2012)

Supreme COURT, COUNTY OF Bronx

Index No: 304102/2015 Date Index Issued: 09/25/2015

ROSALINO RAMOS

Plaintiff(s)/Petitioner(s)

For Court Clerk Use Only:	
IAS Entry Date	11/13/15
Judge Assigned	
RJI Date	11/13 AM 9:55

-against-

THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, OFFICER PETER WONG SHIELD NO.: 26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142

Defendant(s)/Respondent(s)

NATURE OF ACTION OR PROCEEDING

MATRIMONIAL

☐ Contested

NOTE: For all Matrimonial actions where the parties have children under the age of 18, complete and attach the MATRIMONIAL RJI Addendum.
For Uncontested Matrimonial actions, use RJI form UD-13.

TORTS

☐ Asbestos☐ Breast Implant☐ Environmental: (specify)☐ Medical, Dental, or Podiatric Malpractice☐ Motor Vehicle☐ Products Liability: (specify)☐ Other Negligence: (specify)☐ Other Professional Malpractice: (specify)☒ Other Tort: False arrest (specify)

OTHER MATTERS

☐ Certificate of Incorporation/Dissolution [see NOTE under Commercial]☐ Emergency Medical Treatment☐ Habeas Corpus☐ Local Court Appeal☐ Mechanic's Lien☐ Name Change☐ Pistol Permit Revocation Hearing☐ Sale or Finance of Religious/Not-for-Profit Property☐ Other: (specify)

COMMERCIAL

☐ Business Entity (including corporations, partnerships, LLCs, etc.)☐ Contract☐ Insurance (where insurer is a party, except arbitration)☐ UCC (including sales, negotiable instruments)☐ Other Commercial: (specify)

NOTE: For Commercial Division assignment requests [22 NYCRR § 202.70(d)], complete and attach the COMMERCIAL DIV RJI Addendum.

REAL PROPERTY: How many properties does the application include?

☐ Condemnation☐ Mortgage Foreclosure (specify):☐ Residential☐ Commercial

Property Address: Street Address City State Zip

NOTE: For Mortgage Foreclosure actions involving a one- to four-family, owner-occupied, residential property, or an owner-occupied condominium, complete and attach the FORECLOSURE RJI Addendum.

☐ Tax Certiorari - Section: Block: Lot:☐ Tax Foreclosure☐ Other Real Property: (specify)

SPECIAL PROCEEDINGS

☐ CPLR Article 75 (Arbitration) [see NOTE under Commercial]☐ CPLR Article 78 (Body or Officer)☐ Election Law☐ MHL Article 9.60 (Kendra's Law)☐ MHL Article 10 (Sex Offender Confinement-Initial)☐ MHL Article 10 (Sex Offender Confinement-Review)☐ MHL Article 81 (Guardianship)☐ Other Mental Hygiene: (specify)☐ Other Special Proceeding: (specify)

YES NO

Has a summons and complaint or summons w/notice been filed?

Has a summons and complaint or summons w/notice been served?

Is this action/proceeding being filed post-judgment?

If yes, date filed: 09/25/2015

If yes, date served: 09/29/2015

If yes, judgment date:

NATURE OF JUDICIAL INTERVENTION:

Check ONE box only AND enter additional information where indicated.

- ☐ Infant's Compromise
☐ Note of Issue and/or Certificate of Readiness
☐ Notice of Medical, Dental, or Podiatric Malpractice
☒ Notice of Motion
☐ Notice of Petition
☐ Order to Show Cause
☐ Other Ex Parte Application
☐ Poor Person Application
☐ Request for Preliminary Conference
☐ Residential Mortgage Foreclosure Settlement Conference
☐ Writ of Habeas Corpus
☐ Other (specify): _____

Date Issue Joined: _____

Relief Sought: Change Venue

Return Date: 12/09/2015

Relief Sought: _____

Return Date: _____

Relief Sought: _____

Return Date: _____

Relief Sought: _____

Return Date: _____

RELATED CASES:

List any related actions: For Matrimonial actions, include any related criminal and/or Family Court cases. If additional space is required, complete and attach the RJL Addendum. If none, leave blank.

Case Title	Index/Case No.	Court	Judge (if assigned)	Relationship to Instant Case

PARTIES:

For parties without an attorney, check "Un-Rep" box AND enter party address, phone number and e-mail address in space provided. If additional space is required, complete and attach the RJL Addendum.

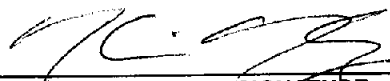
Un-Rep	Parties:	Attorneys and/or Unrepresented Litigants:	Issue Joined (Y/N):	Insurance Carrier(s):
☐	RAMOS Last Name ROSALINO First Name Plaintiff Primary Role: Secondary Role (if any):	RAWLINS Last Name GARY First Name Firm Name 300 CADMAN PLAZA WEST, 12TH FLOOR Street Address BROOKLYN City New York State 11021 Zip +1 (212) 926-0050 Phone Fax e-mail	☒ YES ☐ NO	
☐	THE CITY OF NEW YORK Last Name First Name Defendant Primary Role: Secondary Role (if any):	THE CITY OF NEW YORK Last Name First Name Firm Name 100 CHURCH ST. Street Address NEW YORK City New York State 10007 Zip +1 (212) 356-2107 Phone Fax e-mail	☒ YES ☐ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any):	Last Name First Name Firm Name Street Address City State Zip Phone Fax e-mail	☐ YES ☐ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any):	Last Name First Name Firm Name Street Address City State Zip Phone Fax e-mail	☐ YES ☐ NO	

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: 11/12/2015

5085568

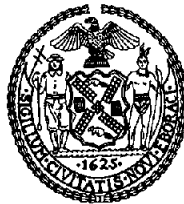
ATTORNEY REGISTRATION NUMBER



 SIGNATURE
 KEVIN J. KELLY

PRINT OR TYPE NAME

Print Form



**THE CITY OF NEW YORK
LAW DEPARTMENT**

TORT DIVISION

100 Church Street

New York, New York 10007

ZACHARY W. CARTER
Corporation Counsel

KEVIN J. KELLY
phone: (212) 356-2107
fax: (212) 356-4360
email: kkelly@law.nyc.gov

November 12, 2015

Supreme Court of the State of New York
Clerk, County of Bronx
851 Grand Concourse
Bronx, New York 10451

Re: Rosalino Ramos v. City of New York et al.
Index # 304102/15 (Bronx County Supreme Court)
City File # 2015-044551

Dear Sir/Madam:

The Corporation Counsel is exempt from payment of fees, including filing and postage fees, pursuant to C.P.L.R. § 8019(d) and New York City Administrative Code § 7-102.

Accordingly, please process the above request for the filing of a Request for Judicial Intervention and motion in the above entitled action.

Thank you for your cooperation in this matter.

Very truly yours,

Zachary W. Carter
Corporation Counsel


By: KEVIN J. KELLY
Assistant Corporation Counsel

FILED Jan 11 2016 Bronx County Clerk
NEW YORK SUPREME COURT - COUNTY OF BRONX

PART 03

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX:

Case Disposed	☐
Settle Order	☐
Schedule Appearance	☐

-----X
RAMOS, ROSALINO

Index No. 0304102/2015

-against-

Hon. MITCHELL J. DANZIGER

CITY OF NEW YORK

Justice.
-----X

The following papers numbered 1 to _____ Read on this motion, CHANGE VENUE
 Noticed on December 09 2015 and duly submitted as No. _____ on the Motion Calendar of _____

	PAPERS NUMBERED		
Notice of Motion - Order to Show Cause - Exhibits and Affidavits Annexed			
Answering Affidavit and Exhibits			
Replying Affidavit and Exhibits			
_____ Affidavits and Exhibits			
Pleadings - Exhibit			
Stipulation(s) - Referee's Report - Minutes			
Filed Papers			
Memoranda of Law			

Upon the foregoing papers this

Motion seeking to transfer the venue of this matter from Bronx County to New York County,
 CPLR 504(3) is granted.

Sufficient has been shown to warrant the transfer of venue of this matter. Movant shall serve
 a copy of this order upon the Clerks of both this county and New York County.

Additionally, the clerk of this court shall forward the file to the Clerk of New York County.

The above constitutes the decision and order of the court.

Motion is Respectfully Referred to:

Justice: _____

Dated: _____

Dated: 1, 15, 16Hon. 

MITCHELL J. DANZIGER, J.S.C.

INSYNC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROSALINO RAMOS,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.:26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants.

NOTICE OF MOTION

Index No: 304102/2015

File No: 2015-044551

Hon. Mitchell Danziger
IAS Part 3

Return Date: December 9, 2015

PLEASE TAKE NOTICE that, upon the annexed affirmation of KEVIN J. KELLY dated

November 12, 2015, the exhibits annexed thereto, and all of the papers, pleadings and proceedings heretofore had and filed herein, defendants THE CITY OF NEW YORK and THE CITY OF NEW YORK S/H/A NEW YORK POLICE DEPARTMENT will move this Court before Hon. Mitchell Danziger, Part 3, located at 851 Grand Concourse, Bronx, NY 10451, on December 9, 2015, at 9:30 A.M., or as soon thereafter as counsel can be heard, for an Order:

1. Changing the venue of this action from Bronx County to New York County pursuant to CPLR §§ 504(3), 510, and 511(a); and
2. For such other and further relief as this Court may deem just and proper.

The above action is to recover damages for personal injuries.

12/9

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INSYNC

-----X
ROSALINO RAMOS,

NOTICE OF ENTRY

Plaintiff,

Index No: 304102/2015

- against -

File No: 2015-044551

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.: 26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Assigned Judge: Hon. Danziger

IAS Part: 03

Defendants.
-----X

PLEASE TAKE NOTICE that the within is a copy of an Order and decision of the Hon.
Mitchell J. Danziger, dated January 5, 2016, which was duly filed and entered in the Office of the
Bronx County Clerk on January 11, 2016.

Dated: New York, New York
February 2, 2016

ZACHARY W. CARTER
Corporation Counsel of the
City of New York
Attorney for Defendant City of New York
100 Church Street
New York, New York 10007
(212) 356-2107

By:


KEVIN J. KELLY
Assistant Corporation Counsel

TO: BY MAIL
GARY N. RAWLINS
Attorney for Plaintiff
300 Cadman Plaza West
One Pierrepont Plaza
12th Floor
Brooklyn, New York 11201

FILED Jan 11 2016 Bronx County Clerk

NEW YORK SUPREME COURT - COUNTY OF BRONX

PART 03

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX:

Case Disposed	☐
Settle Order	☐
Schedule Appearance	☐

RAMOS, ROSALINO

Index No. 0304102/2015

-against-

Hon. MITCHELL J. DANZIGER

CITY OF NEW YORK

Justice.

The following papers numbered 1 to _____ Read on this motion, CHANGE VENUE
Noticed on December 09 2015 and duly submitted as No. _____ on the Motion Calendar of _____

	PAPERS NUMBERED		
Notice of Motion - Order to Show Cause - Exhibits and Affidavits Annexed			
Answering Affidavit and Exhibits			
Replying Affidavit and Exhibits			
_____ Affidavits and Exhibits			
Pleadings - Exhibit			
Stipulation(s) - Referee's Report - Minutes			
Filed Papers			
Memoranda of Law			

Upon the foregoing papers this

Motion is Respectfully Referred to:

Justice: _____

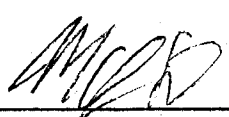
Dated: _____

Motion seeking to transfer the venue of this matter from Bronx County to New York County, CPLR 504(3) is granted.

Sufficient has been shown to warrant the transfer of venue of this matter. Movant shall serve a copy of this order upon the Clerks of both this county and New York County.

Additionally, the clerk of this court shall forward the file to the Clerk of New York County.

The above constitutes the decision and order of the court.

Dated: 1, 15, 16Hon. 

MITCHELL J. DANZIGER, J.S.C.

AFFIRMATION OF SERVICE

STATE OF NEW YORK, COUNTY OF NEW YORK

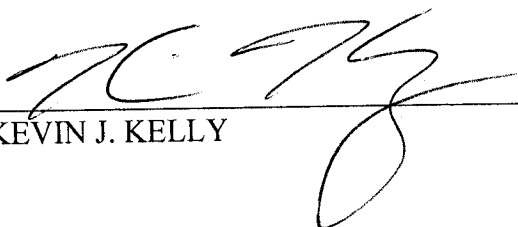
The undersigned, an attorney admitted to practice in the courts of New York State, shows: that she is employed in the office of the Corporation Counsel of the City of New York, and affirms this statement to be true under the penalties of perjury, pursuant to Rule 2106 CPLR:

That on the 2nd day of February 2016, he served the annexed ORDER WITH NOTICE OF ENTRY upon:

GARY N. RAWLINS
300 Cadman Plaza West
One Pierrepont Plaza
12th Floor
Brooklyn, New York 11201

being the address within the State theretofore designated by him/her for that purpose, by causing to be deposited a copy of the same, enclosed in a prepaid wrapper in a post office box situated in New York, in the Borough of New York County, City of New York, regularly maintained by the Government of the United States in said City.

Dated: New York, New York
February 2, 2016



KEVIN J. KELLY

INSYNC

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
ROSALINO RAMOS

Plaintiff(s)/Petitioner(s),

Index No. 304102/2015

- against -

THE CITY OF NEW YORK ET AL.

Defendant(s)/Respondent(s).
-----X

NOTICE TO COUNTY CLERK – CPLR § 8019(c)

By order dated 1/5/2016, and entered on 1/11/2016, the Court directed the County Clerk to make an entry on the docket of this matter. As required by CPLR § 8019 (c), notice of the order is hereby given to the County Clerk with the request that the County Clerk make such entry.

Dated: 2/2/2016

Kevin J. Kelly (Name)

NYC Law Department (Firm)

100 Church Street (Address)

New York, NY 10007

212-356-2107 (Phone)

212-356-4360 (Fax)

kkelly@law.nyc.gov (E-Mail)

Attorney(s) for City of New York

[THE ORDER MUST ACCOMPANY THIS NOTICE AS A SINGLE PDF]

3/19/12

FILED Jan 11 2016 Bronx County Clerk
NEW YORK SUPREME COURT - COUNTY OF BRONX

PART 03

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX:Case Disposed ☐
Settle Order ☐
Schedule Appearance ☐

RAMOS, ROSALINO

Index No. 0304102/2015

-against-

Hon. MITCHELL J. DANZIGER

CITY OF NEW YORK

Justice.

The following papers numbered 1 to _____ Read on this motion, CHANGE VENUE
Noticed on December 09 2015 and duly submitted as No. _____ on the Motion Calendar of _____

	PAPERS NUMBERED		
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Replying Affidavit and Exhibits			
_____ Affidavits and Exhibits			
Pleadings - Exhibit			
Stipulation(s) - Referee's Report - Minutes			
Filed Papers			
Memoranda of Law			

Upon the foregoing papers this

Motion seeking to transfer the venue of this matter from Bronx County to New York County, CPLR 504(3) is granted.Sufficient has been shown to warrant the transfer of venue of this matter. Movant shall serve a copy of this order upon the Clerks of both this county and New York County.Additionally, the clerk of this court shall forward the file to the Clerk of New York County.

The above constitutes the decision and order of the court.

Motion is Respectfully Referred to:

Justice:

Dated:

Dated: 1 15 16Hon. 

MITCHELL J. DANZIGER, J.S.C.

PART 03

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX:

Case Disposed ☐
Settle Order ☐
Schedule Appearance ☐

RAMOS, ROSALINO

Index No. 0304102/2015

-against-

Hon. MITCHELL J. DANZIGER

CITY OF NEW YORK

Justice.

The following papers numbered 1 to _____ Read on this motion, CHANGE VENUE
Noticed on December 09 2015 and duly submitted as No. _____ on the Motion Calendar of _____

	PAPERS NUMBERED	
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Answering Affidavit and Exhibits		
Replying Affidavit and Exhibits		
_____ Affidavits and Exhibits		
Pleadings - Exhibit		
Stipulation(s) - Referee's Report - Minutes		
Filed Papers		
Memoranda of Law		

Upon the foregoing papers this

Motion seeking to transfer the venue of this matter from Bronx County to New York County, CPLR 504(3) is granted.

Sufficient has been shown to warrant the transfer of venue of this matter. Movant shall serve a copy of this order upon the Clerks of both this county and New York County.

Additionally, the clerk of this court shall forward the file to the Clerk of New York County.

The above constitutes the decision and order of the court.

Motion is Respectfully Referred to:

Justice: _____

Dated: _____

Dated: 1, 5, 16

Hon. _____

MITCHELL J. DANZIGER, J.S.C.

INSYNC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MITCHELL J. DANZIGER

NOV 16 2015

-----X
ROSALINO RAMOS,

NOTICE OF MOTION

Plaintiff,

Index No: 304102/2015

File No: 2015-044551

- against -

Hon. Mitchell Danziger

IAS Part 3

Return Date: December 9, 2015

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.: 26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants.
-----X

PLEASE TAKE NOTICE that, upon the annexed affirmation of KEVIN J. KELLY dated November 12, 2015, the exhibits annexed thereto, and all of the papers, pleadings and proceedings heretofore had and filed herein, defendants THE CITY OF NEW YORK and THE CITY OF NEW YORK S/H/A NEW YORK POLICE DEPARTMENT will move this Court before Hon. Mitchell Danziger, Part 3, located at 851 Grand Concourse, Bronx, NY 10451, on **December 9, 2015**, at 9:30 A.M., or as soon thereafter as counsel can be heard, for an Order:

- 12/9
CH/G-LEN
SMB
1. Changing the venue of this action from Bronx County to New York County pursuant to CPLR §§ 504(3), 510, and 511(a); and
 2. For such other and further relief as this Court may deem just and proper.

The above action is to recover damages for personal injuries.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSALINO RAMOS,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.:26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants.
-----X

**AFFIRMATION IN
SUPPORT**

Index No: 304105/2015
File No: 2015-044572

Hon. Mitchell Danziger
IAS Part 3

Return Date: December 9, 2015

KEVIN J. KELLY, an attorney admitted to practice in the State of New York and an Assistant Corporation Counsel of the City of New York affirms the truth of the following under the penalties of perjury pursuant to CPLR 2106 upon information and belief based upon the records maintained in this office.

1. This affirmation is submitted in support of the motion of Defendants THE CITY OF NEW YORK, and THE CITY OF NEW YORK S/H/A NEW YORK POLICE DEPARTMENT [hereinafter collectively referred to as "City"] for an Order pursuant to CPLR §§ 504(3) and 510(1) changing the venue of this action from Bronx County to New York County.

2. This is an action to recover damages for personal injuries allegedly sustained by Plaintiff on August 23, 2014, when he claims he was falsely arrested in the vicinity 334 West Houston Street in Manhattan, New York.

PROCEDURAL HISTORY

3. On or about September 25, 2015, Plaintiff filed a summons and complaint, annexed hereto as **Exhibit A**.

4. Plaintiff's verified complaint states that Plaintiff is a resident of New York County. See Exhibit A at ¶ 2. Plaintiff's summons purports to designate Bronx County as the place of trial pursuant to only CPLR § 509. See Exhibit A.

5. Defendant City was served with Plaintiff's summons and complaint on or about September 29, 2015. On October 21, 2015, the City joined issue by service of its Answer, annexed hereto as **Exhibit B**.

6. Attached to the City's answer was a Demand and Stipulation to Change Venue to the proper County. See Exhibit B.

7. To date, Plaintiff's counsel has not contacted the office of the undersigned to consent to the change in venue. Nor has Plaintiff's counsel provided an affidavit showing either that New York County is an improper venue or that Bronx County is a proper venue for the instant action. See CPLR 511(b).

ARGUMENT

8. The Court is vested with broad discretion to place a case in its proper venue. See Rizzuto v. Aurelia Osborne Fox Mem'l Hosp. Soc'y, 265 A.D.2d 471, 472 (2d Dep't 1999); Morale v. La Grange Inn, Inc., 160 A.D.2d 783, 784 (2d Dep't 1990). The Court may, pursuant to CPLR § 510(1) change venue when "the county designated for that purpose is not a proper county." See CPLR § 510(1).

9. As an initial matter, it is important to note that Plaintiff, per his own verified complaint, resides in New York County. See Exhibit A at ¶ 2. Plaintiff's only basis for venue in Bronx County was "pursuant to CPLR § 509". See Exhibit A. CPLR § 509 states as follows:

Notwithstanding any provision of this article, the place of trial of an action shall be in the county designated by the plaintiff, unless the place of trial is changed to another county by order upon motion, or by consent as provided in subdivision (b) of rule 511.

CPLR § 509 is not a vehicle for determining the placement of venue, but rather, a statute specifying that Plaintiff, in the first instance, may select venue. Therefore, Plaintiff's "basis" for venue in Bronx County as stated on his Summons is not only void, it is also violates CPLR § 305 which specifies that the basis of venue must be specified on the Summons. Plaintiff is not entitled to invoke CPLR § 509 to bring an action wherever he wishes in the State of New York as the other subdivisions of Article 5 of the CPLR, including CPLR 504(3), specify when and where venue is proper. See Siegel, NY PRAC. § 118 (4th ed).

10. Pursuant to CPLR § 504(3), venue in the instant action is proper in New York County alone, as Plaintiff has asserted claims against municipal entities arising from events which he alleges occurred in New York County. Therefore, the City moves pursuant to CPLR § 510(1) to transfer venue to New York County, the County of alleged occurrence, as mandated by CPLR 504(3). CPLR § 510(1) holds that:

The court, upon motion, may change the place of trial of an action where: 1. the county designated for that purpose is not a proper county; or 2. there is reason to believe that an impartial trial cannot be had in the proper county; or 3. the convenience of material witnesses and the ends of justice will be promoted by the change.

11. The City respectfully emphasizes that CPLR § 504(3) is couched in mandatory terms and specifically states that the place of trial of all actions against the City of New York shall be "in the county within the City in which the cause of action arose." See Bustillo v. City of

New York, 201 A.D.2d 395 (1st Dep't 1994). The purpose of the venue rule is to protect a County and its public officers from being inconvenienced and to protect against public resources being wasted. Babylon Assocs. v. Suffolk County, 89 A.D.2d 57, 58 (1st Dep't 1982); Powers v. East Hudson Parkway Auth., 75 A.D.2d 776, 776 (1st Dep't 1980). Thus, the convenience of public officers and the efficient use of public resources are given more weight than the convenience of the respective parties. See Powers, 75 A.D.2d at 776; Rogers v. U-Haul Co., 161 A.D.2d 214, 215 (1st Dep't 1990) (holding that, as CPLR § 504 is couched in "mandatory terms," it should be complied with "absent compelling countervailing circumstances. . . ."); Babylon Associates v. County of Suffolk, 89 A.D.2d 57 (1st Dep't 1982); Seaboard Surety Co. v. Facilities Development Corp., 100 A.D.2d 787, 788 (1st Dep't 1984) ("in the absence of compelling circumstances, courts should comply with the statutory direction" governing the place of trial against a public entity); Powers v. East Hudson Parkway Authority, 75 A.D.2d 776-77 (1st Dep't 1980); Messinger v. Festa, 94 A.D.2d 792 (2d Dep't 1983).

12. The law is clear that the venue mandate of CPLR § 504(3) can only be overcome by the presence of "special" or "compelling" circumstances. Ruiz v. City of New York, 195 A.D.2d 327, 328 (1st Dep't 1993); Smith v. City of New York, 158 A.D.2d 594 (2d Dep't 1990); Messinger v. Festa, 94 A.D.2d 792, 792-93 (2d Dep't 1983) (making an exception to statute due to hardship resulting from plaintiff's paraplegia); Powers, 75 A.D.2d at 776. As such, "[t]he burden of demonstrating hardship adequate to overcome the statute is entirely the plaintiff's." Ruiz, 195 A.D.2d at 328; Messinger, 94 A.D.2d at 792. Furthermore, the Appellate Division recently stated that a plaintiff must show a "meritorious reason" for bringing a claim in a wrong county. Forrester v. City of New York, 15 A.D.3d 238, 238-39 (1st Dep't 2005).

13. Although the instant motion was served a mere seven days beyond the fifteen-day time requirement of CPLR § 510, this Court may still decide the instant motion pursuant to CPLR § 510. Both the First and Second Departments have held that a court may disregard a motion served late pursuant to CPLR § 510, when the delay was caused by the misleading tactics of Plaintiff's attorney in failing to properly notice the basis of venue in the Summons as required by CPLR § 305. See Philogene v. Fuller Auto Leasing, 167 A.D.2d 178, 179 (1st Dep't 1990) (holding that "Noncompliance with the statutory time requirements should not act as a bar where, as here, a plaintiff's willful omissions and misleading statements regarding his residence are the cause of such noncompliance and the defendant moves promptly after ascertaining the true state of affairs."); Brash v. Richards, 87 A.D.3d 556 (2d Dep't 2011) (ordering venue to be changed on the basis of defendant's late CPLR § 510 motion when Plaintiff, in violation of CPLR § 305, failed to notice the basis of venue in his Summons, and his address in the Summons if venue was based on his address). Here, Plaintiff's attorney failed to include Plaintiff's address on the summons and improperly noticed his basis for venue in Bronx County a "pursuant to CPLR § 509" which is not a proper basis for the selection of venue. See Exhibit A. As such, this Court may decide the instant motion pursuant to CPLR § 510.

14. Furthermore, that this motion is submitted a mere seven days beyond the fifteen-day period is not fatal as, upon motion by any party, changing venue to the correct County it is within the sound discretion of this Court pursuant to CPLR 511(a). Here, Plaintiff is a resident of New York County, not Bronx County. See Exhibit A (Verified Complaint). Plaintiff alleges that his underlying claims arose in New York County. Finally, as noted above, as the City is a party, venue is only proper pursuant to CPLR § 504(3) which is couched in mandatory terms and specifically states that the place of trial of all actions against the City of New York shall be "in

the county within the City in which the cause of action arose.” See Bustillo v. City of New York, 201 A.D.2d 395 (1st Dep’t 1994).

15. Additionally, there will be no prejudice to Plaintiff as a result of the change of venue to New York County, as the instant motion is being brought within a reasonable time after commencement of Plaintiff’s action. See CPLR § 511(a); see also Gennaro v. Grossfield, 186 A.D.2d 718, 718 (2d Dep’t 1992) (granting a motion to change venue despite a three year delay). There has been no activity in this case aside from the City serving its answer. No preliminary conference or depositions have been scheduled. Furthermore, the City, after joining issue, promptly asserted the instant request to change of venue, thus there is no unfair surprise. See Arbel v. Turgeon Restaurants of Niagara Falls, Inc., 124 A.D.2d 769, 770 (2d Dep’t 1986) (holding the defendant asserted the request to change venue within a reasonable time when it was asserted before the completion of discovery).

16. Therefore, as the cause of action arose in New York County, CPLR § 504(3) mandates that the place of trial must be changed to New York County from its improper designation in Bronx County. For these reasons, the City respectfully requests that this Honorable Court exercise its discretion to change venue from Bronx County to New York County.

WHEREFORE, it is respectfully requested that the City’s motion be granted in its entirety and for such other and further relief as this court may deem just and proper.

Dated: New York, New York
November 12, 2015



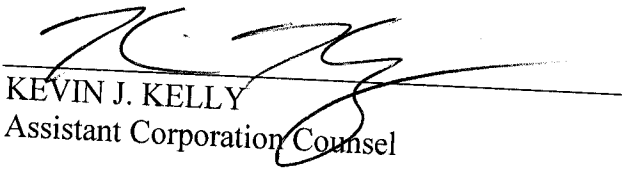
KEVIN J. KELLY
Assistant Corporation Counsel

PLEASE TAKE FURTHER NOTICE that answering affidavits, if any, are required to be served upon the undersigned at the address below at least seven (7) days prior to the return date of this motion.

Dated: New York, New York
November 12, 2015

Yours,
ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendants
THE CITY OF NEW YORK, and THE CITY
OF NEW YORK S/H/A THE NEW YORK
POLICE DEPARTMENT
100 Church Street
New York, New York 10007
Phone: (212) 356-2107

By:


KEVIN J. KELLY
Assistant Corporation Counsel

BY MAIL:

GARY N. RAWLINS
Attorney for Plaintiff
300 Cadman Plaza West
One Pierrepont Plaza, 12th Floor
Brooklyn, New York 11021

AFFIRMATION OF SERVICE

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

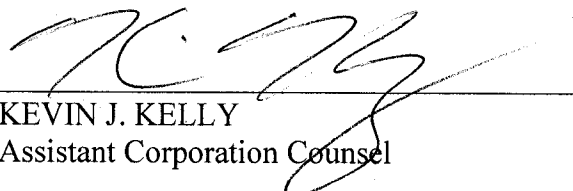
The undersigned, an attorney admitted to practice in the courts of New York State, affirms that she is over 18 years of age and not a party to this action, she is employed in the office of the Corporation Counsel of the City of New York, and affirms this statement to be true under the penalties of perjury, pursuant to Rule 2106 of the CPLR:

That on the 12th day of November, 2015, he served the annexed **NOTICE OF MOTION, AFFIRMATION IN SUPPORT, REQUEST FOR JUDICIAL INTERVENTION, and EXHIBITS** upon:

GARY N. RAWLINS
300 Cadman Plaza West
One Pierrepont Plaza, 12th Floor
Brooklyn, New York 11021

being the address within the State theretofore designated by Plaintiff for that purpose, by depositing a copy of the same, enclosed in a prepaid wrapper in a post office box situated in the Borough of Manhattan, City of New York, regularly maintained by the Government of the United States.

Dated: New York, New York
November 12, 2015



KEVIN J. KELLY
Assistant Corporation Counsel

Exhibit

A

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSALINO RAMOS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.:26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants,
-----X

Index No.:
Date Purchased:
SUMMONS

Plaintiffs designate
Bronx County as the
Place of trial.

The basis of venue is:
Plaintiff Designates Bronx County
Pursuant to CPLR § 509

County of Bronx

To the above named Defendant:

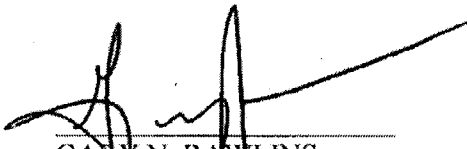
You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, while service is made by delivery upon you personally within the state, or, within 30 days after completion of service while service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
August 27, 2015

RECEIVED

2015 SEP 25 PM 4:26

COUNTY CLERK
BRONX COUNTY


GARY N. RAWLINS
Attorney for Plaintiff
ROSALINO RAMOS
300 Cadman Plaza West
One Pierrepont Plaza
12th Floor
Brooklyn, NY 11201
Tel : (212) 926-0050
Fax (347)332-1592

TO:

Zachary Carter

Attorney for Defendant

CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT

New York City Law Department

100 Church Street

New York, New York 10007

OFFICER PETER WONG SHIELD NO.: 26984

Special Operations Division

Via

1 Police Plaza Path,

New York, NY 10007

OFFICER JASON RUBENSTEIN SHIELD NO.: 24550

Special Operations Division

Via

1 Police Plaza Path,

New York, NY 10007

OFFICER DANIEL MENSING

Special Operations Division

Via

1 Police Plaza Path,

New York, NY 10007

SERGEANT RICHARD JONES SHIELD NO.: 04142

Special Operations Division

Via

1 Police Plaza Path,

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSALINO RAMOS

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

Index No.:

Date Purchased:

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.:26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants,
-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified
Complaint, respectfully alleges, upon information and belief that:

1. The Plaintiff, **ROSALINO RAMOS**, at all times herein mentioned was and still is a resident of the County of New York and the State of New York.
2. At all times herein mentioned Defendant **THE CITY OF NEW YORK** ("NYC"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff **ROSALINO RAMOS** upon NYC in accordance with Section 50-e of the General Municipal Law.
4. That notice of claim was served on September 18, 2014.

5. Within ninety days of (90) of August 23, 2014, a notice of claim in writing was served on behalf of Plaintiff **ROSALINO RAMOS** upon NYC, in accordance with Section 50-e of the General Municipal Law.

6. Prior to the commencement of this action, notice of the intention of Plaintiff **ROSALINO RAMOS** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon NYC.

7. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.

8. A hearing pursuant to General Municipal Law 50-h was held on November 19, 2014.

9. This action is commenced within one (1) year and ninety (90) days from August 23, 2014.

10. At all relevant times, Defendants were members of the **NEW YORK POLICE DEPARTMENT**, and were employees of Defendant **CITY**, and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.

11. The individual Defendants were acting pursuant to the authority conferred upon them by Defendant police department and Defendant municipality.

12. At all times herein mentioned, Defendants **NYC and NEW YORK POLICE DEPARTMENT** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

13. Defendants NYC are vicariously liable for the acts of Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142.**

14. By reason of the foregoing, Plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS

15. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

16. Plaintiff **ROSALINO RAMOS** sues all Defendants in their capacities.

17. On or about August 23, 2014, at approximately 12:25am, at 334 West Houston Street in Manhattan, Plaintiff **ROSALINO RAMOS** was filming his cousin being arrested for driving while intoxicated, even though he was the designated driver. Plaintiff was charged with obstructing government administration, disorderly conduct, resisting arrest and brought to the 7th Precinct. From the precinct, he was transported to Bellevue Hospital where he was treated after passing out due to the handcuffs being too tight and never loosened despite his requests. Plaintiff was then taken to Central Bookings and again tightly handcuffed where he spent 24 hours before being released. All charges against Mr. Ramos were dismissed on May 26, 2015.

18. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

19. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **ROSALINO RAMOS**.

20. Prior to August 23, 2014, the City of New York and the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Ramos' rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The respondent's agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein. **ROSALINO RAMOS** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the respondents involved individually and jointly, their agents, servants

employees and/or licensees in the control, supervision, hiring and training of the officers and employees who were deliberately indifferent to Mr. Ramos' civil rights and rights under his employment contract.

21. Throughout this period, Plaintiff **ROSALINO RAMOS** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

22. Defendants, their officers, agents, servants and/or employees were responsible for plaintiff **ROSALINO RAMOS** false arrest, detention and imprisonment during this period of time.

23. Throughout plaintiff **ROSALINO RAMOS** imprisonment, defendants, and their offices, agents servants, and employees refused to give plaintiff an opportunity to establish his innocence.

24. Defendants intended to and did in fact confine Plaintiff **ROSALINO RAMOS** and physically prevented him from leaving their custody and kept him under the supervision without access to his freedom, family and home.

25. Plaintiff **ROSALINO RAMOS** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

26. At all relevant times, the false arrest and imprisonment of plaintiff **ROSALINO RAMOS** was without right or privilege, and without probable or reasonable cause.

27. At all relevant times, the false arrest, malicious prosecution, imprisonment of Plaintiff **ROSALINO RAMOS** were against his will.

28. All of the foregoing occurred without fault or provocation on the part of plaintiff **ROSALINO RAMOS**.

29. As consequence of Defendants' wrongful actions, negligent behavior, and violations of **Mr. RAMOS' FEDERAL CONSTITUTIONAL RIGHTS**, Plaintiff **ROSALINO**

RAMOS :

- a. was deprived of his freedom;
- b. was incarcerated and suffered incarceration;
- c. was subject to great fear, terror personal humiliation degradation, ridicule and disgrace;
- d. was subjected to great physical, mental and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which he incurred;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. was permanently impaired as to his earning ability;
- h. And continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants their agents, employees, and servants.

30. Defendants acted knowingly, willfully, wantonly, recklessly unlawfully, and in unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward his.

31. By reason of the foregoing, plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE SECOND CAUSE OF ACTION
FOR FALSE ARREST AS AGAINST ALL DEFENDANTS

32. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

33. Plaintiff **ROSALINO RAMOS** sues all Defendants in their individual capacities.

34. On August 23, 2014, Plaintiff **ROSALINO RAMOS** was wrongfully, unlawfully and unjustifiably arrested, detained and deprived of his liberty against his will, and was imprisoned by Defendants, their officers, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

35. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant.

36. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **ROSALINO RAMOS**.

37. On or about August 23, 2014, at approximately 12:25am, at 334 West Houston Street in Manhattan, Plaintiff **ROSALINO RAMOS** was filming his cousin being arrested for driving while intoxicated, even though he was the designated driver. Plaintiff was charged with obstructing government administration, disorderly conduct, resisting arrest and brought to the 7th Precinct. From the precinct, he was transported to Bellevue Hospital where he was treated after passing out due to the handcuffs being too tight and never loosened despite his requests. Plaintiff was then taken to Central Bookings and again tightly handcuffed where he spent 24 hours before being released. All charges against Mr. Ramos were dismissed on May 26, 2015.

38. Plaintiff **ROSALINO RAMOS** was unexpectedly and forcefully arrested, although he did not resist.

39. Thereafter, Plaintiff **ROSALINO RAMOS** was falsely arrested.

40. Throughout this period, Plaintiff **ROSALINO RAMOS** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

41. Defendants, their officers, agents, servant and/or employees were responsible for Plaintiff **ROSALINO RAMOS** arrest, detention and imprisonment during this period of time.

42. Throughout Plaintiff **ROSALINO RAMOS** imprisonment, Defendants, and their officers, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence.

43. Defendants intended to and did in fact confine Plaintiff **ROSALINO RAMOS** and physically prevented his from leaving their custody and kept him under the supervision without access to his freedom, family and home.

44. Plaintiff **ROSALINO RAMOS** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

45. At all relevant times, the unlawful, wrongful and false arrest and imprisonment of Plaintiff **ROSALINO RAMOS** was without right or privilege, and unjustified and without probable or reasonable cause.

46. At no time did Defendants or their officers, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **ROSALINO RAMOS**.

47. On or about the time of Plaintiff **ROSALINO RAMOS** unlawful arrest, criminal charges were brought against him without probable cause.

48. At all relevant times, the false, unlawful, and improper arrest and imprisonment of Plaintiff **ROSALINO RAMOS** was forcible and against his will.

49. All of the foregoing occurred without fault or provocation on the part of Plaintiff **ROSALINO RAMOS**.

50. As consequences of Defendants' wrongful actions, negligent behavior, and violation of New York State and common laws, Plaintiff **ROSALINO RAMOS**:

- a. was deprived of his freedom;
- b. was incarcerated and suffered incarceration;
- c. was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;

- d. was subjected to great physical, mental, and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which him incurred;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. was permanently impaired as to his earning ability;
- h. And continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

51. Defendants acted knowingly, willfully, wantonly, recklessly, unlawfully, and in unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

52. By reason of the foregoing, Plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO
INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

53. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

54. As a result of the above actions, Defendants NYC, individually, and/or vicariously, by and through its agents, servants and /or employees, and, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **ROSALINO RAMOS** by Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142.**

55. As a result of the foregoing, Defendants NYC and **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** individually and and/or vicariously by and through their agents servants, and/or employees, displayed a deliberate indifference to Plaintiff **ROSALINO RAMOS** rights to be free from unreasonable searches and seizures and excessive use of force.

56. As a result of the foregoing, Defendants NYC individually and/or vicariously by and through its agents servants, and/or employees, including **NYPD** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

57. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION
AGAINST DEFENDANTS NYC

58. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraph above with full force and effect as if each were more fully set forth herein.

59. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **ROSALINO RAMOS** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY**.

60. Defendants **NYC**, at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as Defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

61. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants NYC negligently created and caused a situation while it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **ROSALINO RAMOS** of his Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

62. Defendants NYC knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

63. Defendants NYC were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

64. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants NYC and their agents, servants and/or employees, Plaintiff **ROSALINO RAMOS** suffered the afore-stated injuries.

65. Prior to August 23, 2014, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of Mr. Ramos' rights.

66. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.

67. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

68. As a result of the above described policies and customs, police officers of the City of New York, including the Defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

69. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein.

70. By reason of the foregoing, Plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

71. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

72. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, full body strip searching, failing to investigate, failure to advise to law, rule and regulations known to them, failing to heed Plaintiff **ROSALINO RAMOS** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

73. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **ROSALINO RAMOS** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

74. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **ROSALINO RAMOS** and injury to his name and reputation.

75. Said harm did in fact occur in this case, in that Plaintiff **ROSALINO RAMOS** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff has had to seek support and counseling within the family.

76. By reason of the foregoing, Plaintiff **ROSALINO RAMOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SIXTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

77. Plaintiff **ROSALINO RAMOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

78. Defendants' acts were reckless, willful, wanton, malicious, oppressive, and outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **ROSALINO RAMOS** well being, and were based on a lack of concern and ill-will towards Plaintiff.

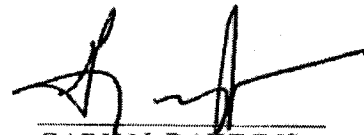
79. Plaintiff **ROSALINO RAMOS** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff **ROSALINO RAMOS** demands judgment against the defendants as follows:

- a. On the First Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- b. On the Second Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;

- c. On the Third Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- d. On the Fourth Cause of Action against **THE CITY OF NEW YORK** all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- e. On the Fifth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- f. On the Sixth Cause of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- g. Together with costs, attorney's fees and disbursements of this action.
- h. Such other and further relief as to the Court may seem just and proper.

Dated: New York, New York
August 27, 2015



GARY N. RAWLINS
Attorney for Plaintiff
ROSALINO RAMOS

RAWLINS LAW, PLLC

300 Cadman Plaza West

One Pierrepont Plaza

12th Floor

Brooklyn, NY 11201

Tel : (212) 926-0050

Fax (347) 332-1592

TO:

Zachary Carter

Attorney for Defendant

CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT

New York City Law Department

100 Church Street

New York, New York 10007

OFFICER PETER WONG SHIELD NO.: 26984

Special Operations Division

Via

1 Police Plaza Path,

New York, NY 10007

OFFICER JASON RUBENSTEIN SHIELD NO.: 24550

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OFFICER DANIEL MENSING

Special Operations Division

Via

1 Police Plaza Path,

New York, NY 10007

SERGEANT RICHARD JONES SHIELD NO.: 04142

Special Operations Division

Via

1 Police Plaza Path,

New York, NY 10007

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK, COUNTY OF BRONX:

Rosalina Lamas, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, NY

8/27/15

J. L. P.

Sworn to before me this 27 day
of August, 20 15

[Signature]
Notary Public

PLEASE TAKE NOTICE

- ☐ That the within is a (certified) true copy of a
Entered in the office of the clerk of the within named court on

NOTICE OF ENTRY

- ☐ That an Order of which the within is a true copy will be presented for settlement to the Hon. _____ one of the judges of
the within named Court.

NOTICE OF SETTLEMENT

Dated:

STATE OF NEW YORK, COUNTY OF BRONX

The undersigned, an attorney admitted to practice on the courts of New York State

- ☐ Certification Certifies that the within
Has been compared by the undersigned with the original and found to be true and complete copy.
☐ Attorney's Shows deponent 1 The attorney(s) of record for the plaintiff in the within action; deponent has read the
Affirmation foregoing

And knows the contents thereof; the same is

True to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief,

And that as to those matters deponent believes it to be true. This verification is made by deponent and not by

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge area as follows:

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated:

Gary N. Rawlins

STATE OF NEW YORK, COUNTY OF BRONX

as:

- ☐ Individual The _____ in the within action; deponent has read the
Verification foregoing and knows the contents thereof; the same is true to deponent's
own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to
those matters deponent believes it to be true
☐ Corporate The _____ of _____
Verification a _____ corporation, _____ in the within action; deponent has read the
foregoing and knows the contents thereof; and the same is true to
deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief,
and as to those matters deponent believes it to be true This verification is made by deponent because is a
corporation and deponent is an officer thereof.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Sworn to before me on

20

The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF BRONX as:

Gary Rawlins Being duly sworn deposes and says: deponent is not a party to the action

Is over 18 years of age and resides at BRONX County

- ☐ Affidavit of On _____, 2015 deponent served the within
service By efendants in this action, at _____ The address designated by
Mail said attorney(s) for that purpose by depositing a true copy of same enclosed in a post-paid properly wrapper,
in—a post office—official depository under the exclusion care and custody of the United States Postal
Service within the State of New York.
☐ Affidavit of On _____, 2015 deponent served the within
service By Upon _____
Mail efendants in this action, _____ The address designated by said attorney(s) for
that purpose by depositing a true copy of same enclosed in a post-paid properly wrapper, in—a post office—
official depository under the exclusion care and custody of the United States Postal Service within the State
of New York.

NOTARY_____
Gary Rawlins

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSALINO RAMOS,

Index No.

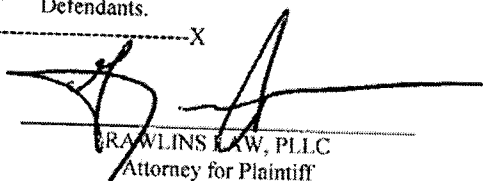
Plaintiffs,

-against-

SUMMONS AND COMPLAINT

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.: 26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants.
-----X


CRAWLINS LAW, PLLC
Attorney for Plaintiff
300 Cadman Plaza West
One Pierrepont Plaza
12th Floor
Brooklyn, NY 11201
P: (212) 926-0050
F: (347) 332-1592

Zachary Carter
Attorney for Defendant
CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT
New York City Law Department
100 Church Street
New York, New York 10007

OFFICER PETER WONG SHIELD NO.: 26984
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007

OFFICER JASON RUBENSTEIN SHIELD NO.: 24550
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007

OFFICER DANIEL MENSING
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007

SERGEANT RICHARD JONES SHIELD NO.: 04142
Special Operations Division
Via
1 Police Plaza Path,
New York, NY 10007
Service of a copy of the within is hereby admitted

Dated: _____

Attorney(s) for Defendant(s)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
ROSALINO RAMOS,

Plaintiff(s),

**DEMAND TO
CHANGE VENUE**

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.: 26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING AND
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendant(s).
-----x

Index #: 304102-2015

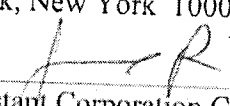
Law Dept. #: 2015-044551

PLEASE TAKE NOTICE THAT, the defendants appearing by the Corporation Counsel do hereby demand that the venue and place of trial of the above-entitled action be changed from this court to Supreme Court County of New York pursuant to the provisions of Section(s) 504(3) of the Civil Practice Law and Rules.

Dated: New York, New York
October 21, 2015

GARY RAWLINS
the attorney(s) for Plaintiff(s)
300 CADMAN PLAZA WEST
BROOKLYN, NY 11201

ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants THE CITY OF NEW
YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT,
100 Church Street
New York, New York 10007

By: 

Assistant Corporation Counsel
JANNINE ROWSER / ~~GAVIN A.~~
MCCANDLISH

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
ROSALINO RAMOS,

Plaintiff(s),

-against-

**STIPULATION TO
CHANGE VENUE**

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD NO.;
26984, OFFICER JASON RUBENSTEIN SHIELD NO.:24550,
OFFICER DANIEL MENSING AND SERGEANT RICHARD
JONES SHIELD NO.: 04142,

Index #: 304102-2015

Law Dept. #: 2015-044551

Defendant(s).
----- x

IT IS HEREBY STIPULATED AND AGREED, by and among the undersigned attorneys for the parties above-named, that the caption and place of trial of this action be amended and changed from the Supreme Court, Bronx County, to the Supreme Court, New York County, pursuant to Section(s) 504(3) of the Civil Practice Law and Rules.

IT IS FURTHER STIPULATED AND AGREED that the Bronx County Clerks Office shall transfer the file from Bronx County to New York County without costs to either party, and that the New York County Clerks Office issue a new index number without costs to either party.

IT IS FURTHER STIPULATED AND AGREED, for purposes of this stipulation only, including filing, a fully executed faxed copy may be deemed an original and facsimile signatures shall be deemed as originals.

IT IS FURTHER STIPULATED AND AGREED that the undersigned attorney from the office of the Corporation Counsel will file such signed stipulation with the clerk of the Court.

Dated: New York, New York
_____, 2015

GARY RAWLINS
the attorney(s) for Plaintiff(s)
300 CADMAN PLAZA WEST
BROOKLYN, NY 11201

By: _____

So Ordered:

ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants THE CITY OF NEW
YORK, THE CITY OF NEW YORK S/H/A NEW
YORK CITY POLICE DEPARTMENT,
100 Church Street
New York, New York 10007

By: _____

Date: _____

Please sign and mail this stipulation to ATTENTION: Johana Castro, NYC Law Department, 100 Church Street, Rm 6-208, New York, NY 10007.

B

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSALINO RAMOS,

ANSWER

Plaintiff(s),

-against-

Index #: 304102-2015

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD
NO.: 26984, OFFICER JASON RUBENSTEIN SHIELD
NO.: 24550, OFFICER DANIEL MENSING AND
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Law Dept. #: 2015-044551

Defendant(s).
-----X

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT, by ZACHARY W. CARTER, Corporation
Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 14, 17-31, 34-52, 54-57, 59-70, 72-76, 78, 79, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to the truth of the allegations set forth in paragraph(s) 1, 10, 11, 13, 16, 33, inclusive.
3. Deny the allegations set forth in paragraph(s) 3-9, inclusive, except that a notice of a claim was presented, that more than thirty days have elapsed without adjustment thereof.
4. Deny each allegation set forth in paragraph(s) 2, 12, inclusive, except that the City of New York is a municipal corporation which maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 15, 32, 53, 58, 71, 77, inclusive, except as otherwise pleaded herein.

AFFIRMATIVE DEFENSE(S)

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Such statements as were made concerning the plaintiff(s) were privileged as being true, or fair comment upon matters of opinion, and were made in the good faith belief in their truth without malice to person(s) having a like duty or interest therein.

12. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

WHEREFORE, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

ZACHARY W. CARTER
Corporation Counsel
100 Church Street
New York, New York 10007

Index #: 304102-2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROSALINO RAMOS,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
OFFICER PETER WONG SHIELD NO.: 26984, OFFICER JASON
RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING AND
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendant(s).

**COMBINED DEMAND FOR
BILL OF PARTICULARS & DISCOVERY**

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF NEW
YORK S/H/A NEW YORK CITY POLICE DEPARTMENT, 100 Church
Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)

(212) 356-3144

Pleadings Unit (212) 356-3235 (pleadings matters only)

All Other Matters (Inquire by county of venue)

Bronx Office: (718) 503-5030 (EBT's - 5045)

Brooklyn Office: (718) 724-5200 (EBT's-5226)

Manhattan Office: (212) 356-2725 (EBT's-2791)

Queens Office: (718) 558-2100 (EBT's - 2105)

Staten Island Office: (718) 876-3600 (EBT's-3603)

Please refer to the following Law Dept. #: **2015-044551**

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
ROSALINO RAMOS,

Plaintiff(s),

-against-

**COMBINED DEMAND FOR
VERIFIED BILL OF
PARTICULARS & DISCOVERY**

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD NO. 26984,
OFFICER JASON RUBENSTEIN SHIELD NO. 24550,
OFFICER DANIEL MENSING AND SERGEANT RICHARD
JONES SHIELD NO. 04142,

Defendant(s).
----- x

DEMAND FOR VERIFIED BILL OF PARTICULARS

PLEASE TAKE NOTICE that pursuant to CPLR 3041, plaintiff(s) is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. The exact date and time of the act or occurrence.
2. The specific location of the act or occurrence with reference to addresses, landmarks, or other identifying points of reference, including the direction and distance therefrom. If the occurrence took place inside a premise, state specifically the location within the premise and also include the block and lot of the premises.
3. State the injuries claimed, if any.
4. State those injuries claimed to be permanent.
5. If applicable, set forth the length of time it is alleged the plaintiff(s) was confined to:
 - (a) Hospital(s);
 - (b) Bed;
 - (c) House.
6. If applicable, set forth the amount claimed as special damages for:
 - (a) Physician(s) services;
 - (b) Nurses services;
 - (c) Hospital expenses;
 - (d) Drugs and medical supplies;
 - (e) X-rays and diagnostic tests.

For each of the foregoing elements of damages please state the name and address(es) of the provider(s) and the dates of treatment. If any of the foregoing elements of damages have been repaid to the plaintiff(s) or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff(s).

7. If applicable, state the total amount of all other special damages not specified in items above; and please state the
 - (a) name and address of each service provider;
 - (b) each date of the service;
 - (c) amount of the expense for each provider;
 - (d) amount of any expense paid by a third-party (including any payment made to reimburse plaintiff);
 - (e) name and address of the third-party paying any expense; and
 - (f) amount of any unreimbursed expense paid by plaintiff(s) personally to each provider.
8. State the occupation of plaintiff(s) at the time of the incident; and please state the:
 - (a) name and address of any employer for 5 years prior to alleged incident and up to the time of trial;
 - (b) length of time totally disabled from work;
 - (c) length of time partially disabled from work;
 - (d) amount claimed for lost earnings, if any;
 - i. if a loss of earnings claim is alleged, please state the yearly gross earnings for each year during 5 years prior to alleged incident and up to the time of trial; and
 - (e) number of days absent from work as a result of injuries sustained from the incident.
9. State the (a) name and address of any school attended by plaintiff(s) for 5 years prior to alleged incident and up to the time of trial; and (b) the number of days lost from school as a result of injuries sustained from incident.
10. State the home address of plaintiff(s) for a period of 5 years prior to the alleged incident to the present.
11. State any other name used by plaintiff(s) and the time period when the name was used.
12. State the date of birth and social security number of plaintiff(s) (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to determine whether plaintiff(s) is (are) Medicaid recipient(s) for purposes of determining whether a Medicaid lien may attach to any judgment or settlement obtained against the defendant(s).
13. State whether plaintiff(s) is (are) Medicare recipient(s). If plaintiff is or was a Medicare recipient please provide their Medicare identification number and social security number (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to verify that plaintiff(s) is (are) Medicare recipient(s) for purposes of defendant(s) meeting its (their) Medicare reporting obligations.
14. If plaintiff(s) has ever been convicted of a crime (including any guilty plea), please state (a) the NYSID number of plaintiff; (b) the dates of every conviction; (c) whether the conviction was state or federal; and (d) the county where each conviction occurred.
15. If the complaint alleges loss of services, set forth the pecuniary loss, if any, alleged in the complaint. Enumerate the damages for:
 - (a) Loss of services;
 - (b) Consortium;
 - (c) Other expenses.
16. State those injuries arising from the use or operation of a motor vehicle which are claimed to be serious, as defined in Insurance Law § 5102 (d), if any.
17. If property damage is claimed, please state (a) all property damaged; (b) the fair market value of each item at the time it was damaged; (c) the cost of repairing each item; (d) the cost of replacing each item; (e) the date each item was acquired; (f) the purchase cost of each item; (g) the amount(s) provided

by a third-party to reimburse damage; (h) the name and address of any third-party which reimbursed damage; and (i) amount of any unreimbursed payment made by plaintiff(s) to replace or repair a damaged item.

18. State the manner in which it is claimed the accident occurred.

19. State separately the acts or omissions constituting the alleged negligence of each of the answering defendant(s), if any.

20. State separately the acts of each of the answering defendant(s) constituting the intentional wrongs claimed, if any.

21. State the names of the employee(s) or agents of the answering defendant(s) who are alleged to have committed the acts set forth in the items above.

22. Describe any alleged dangerous and defective condition and or the object or instrumentality complained of, as well as the nature of the condition alleged.

23. State whether any repairs were made prior to the happening of the alleged accident.

24. If it is alleged that repairs were made prior to the happening of the accident, state when, where, and by whom, the repairs were made.

25. State whether actual or constructive notice is claimed or whether it is alleged that defendant created the condition complained of.

26. If actual notice is claimed, then set forth the following:

(a) The names of the employees, agents and/or servants of the defendant(s) to whom it will be alleged said actual notice was given;

(b) By whom will it be claimed that said actual notice was given on each occasion aforesaid;

(c) The date or dates of each said notice;

(d) The place said actual notice was given.

27. If constructive notice is claimed, state the length of time said condition is alleged to have existed prior to the happening of the alleged occurrence.

28. If prior written notice is claimed, specify the nature of such notice.

29. If prior written notice is claimed, then set forth the following:

(a) The name(s) of the entity, agency, employees, agents and/or servants of the defendant(s) to whom it will be alleged said prior written notice was given;

(b) By whom will it be claimed that said prior written notice was given on each occasion aforesaid;

(c) The date or dates of each said notice;

(d) The place said notice was given.

30. In any action where plaintiff(s) claim the violation of any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes, ordinances, rules or regulations alleged to have been violated by the answering defendant(s).

31. If applicable, describe in what respects defendant(s) failed to provide plaintiff(s) with a safe place to work.

32. If applicable, state whether plaintiff(s) will allege that this defendant(s) was a party to a contract. If yes;

(a) State the parties to the contract;

(b) State the contract number.

33. If applicable, set forth each and every item of construction, excavation or demolition work which the plaintiff(s) will allege was not so constructed, shored, equipped, guarded, arranged, operated and conducted as to provide reasonable and adequate safety; setting forth the manner in which the construction, shoring, equipping, guarding, arranging, operating and/or conducting of the construction, excavating, or demolition work is alleged to have caused the plaintiff(s) alleged injury.

34. If applicable, state whether the plaintiff(s) will allege that this defendant(s) exercised control over the work being performed at the job site. If yes, state the nature and extent of the control allegedly exercised and the exact manner in which said control was exercised.

35. If applicable, state those injuries claimed to be "grave", as defined in the Workers' Compensation Law § 11.

ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges defamation, the following items are additionally demanded:

36. Whether the alleged defamatory statement was communicated orally or in a writing.

37. With respect to each of the answering defendant(s), the particular words complained of and allegedly communicated.

38. The name(s) and address(es) of any person(s) it is alleged heard or received the defamatory statement(s).

39. If it is alleged that the defamatory statement(s) were communicated in a writing, set forth the date(s), nature, and content of the writing.

40. If it is alleged that any defamatory statement was published, set forth the date(s), nature and name of the media or publication and each republication of the alleged defamatory statement.

41. The circumstances, acts, and/or omissions which evince defendant(s) knowledge of the falsity, or reckless disregard of the truth, or malice, with respect to the statement(s) allegedly made.

ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges police misconduct, the following items are additionally demanded:

42. State the criminal court file and docket number of the criminal proceeding.

43. State the (a) the specific charges; (b) the disposition of each charge; and (c) the date of said disposition.

44. State the date and time taken into custody.

45. State the date of arraignment.

46. State the date and time released from incarceration.

47. State the name, address, and phone number of attorney(s) who represented plaintiff(s) in the criminal proceedings.

48. State the amount claimed for legal fees, if any.

49. State the NYSID number of plaintiff(s).

50. For each criminal proceeding, including arraignment, please state the (a) the type of proceeding; (b) the date(s) of the proceeding; (c) the name of reporter who transcribed the proceeding; and (d) the name of Judge who presided over the proceeding.

ALLEGED EXPOSURE TO LEAD-BASED PAINT

Where applicable, in addition to the foregoing, if plaintiff(s) allege damages as a result of exposure to lead-based paint, the following items are additionally demanded:

51. The day, month, and year of initial exposure;

52. The day, month and year when exposure terminated;

53. The address(es), including apartment numbers, of every premises where it is alleged that plaintiff(s) were exposed to lead-based paint;

54. The highest recorded blood lead level for plaintiff(s) and the date of the diagnosis;

55. The date of the initial diagnosis;

56. Whether it is claimed that plaintiff(s) sustained any cognitive injuries or learning disabilities as a result of any alleged exposure and if so, state the nature of the disability, when any such disability was diagnosed, the school and current grade level of plaintiff(s) and whether plaintiff(s) have been placed in any special classes.

ALLEGED ACTION FOR WRONGFUL DEATH

Where applicable, in addition to the foregoing, if plaintiff(s) allege wrongful death, the following items are additionally demanded:

57. State the amount claimed as pecuniary loss, specifying the loss of parental guidance by each person dependant upon support of the decedent.

58. State the names, addresses, ages, and relationships to the decedent of all persons to whose support it is claimed the decedent contributed.

59. State the nature and purpose of the support contributed as to each person supported, including how and when support was given.

60. State the date, place and cause of death.

61. State the length of time the decedent remained conscious of the injuries sustained.

62. State the total amounts claimed as special damages for:

- (a) Funeral and burial expenses;
- (b) Administration expenses;
- (c) Any other damages claimed.

ALLEGED NEGLIGENT EMERGENCY MEDICAL RESPONSE

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent emergency medical response, the following items are additionally demanded:

63. The exact dates and times of the claimed acts or occurrences.

64. The specific locations of the claimed acts and/or occurrences with reference to addresses, landmarks, or other identifying points of reference. If the claimed acts and/or occurrences took place inside a premise, state specifically the location within the premise and/or the department(s), as applicable, of said premises.

65. The specific time when the need for medical attention was first noticed by the plaintiff in distress, or by another person.

66. If a call for emergency assistance was made, indicate:

- (a) the time at which the call was placed.
- (b) the person who placed the call and, if other than the patient, his or her relationship to the patient.

(c) the description or report of injury or emergency given.

(d) if more than one call was made to 911.

(e) what the caller was told by the operator.

67. If more than one call was made to 911, indicate:

(a) the total number of calls made to 911.

(b) the time of each respective subsequent call,

(c) the person or people who made each respective subsequent call (if different from the first call).

(d) if the description of the injury or emergency changed after the first call to 911, indicate what the change was, why the description changed, when the change in condition was first noticed prior to it being reported to 911, and when the change was reported to 911

(e) what the caller was told by the operator during each respective call.

68. Indicate if 911 had been contacted earlier in the day of the incident for the same or similar condition. If so, indicate the person or persons who made the call, and when they made it. Describe what the person or persons were told by the operator.
69. Indicate what time emergency personnel first arrived. Also indicate, if known, the respective names and ranks of emergency personnel who arrived on the scene. If known, indicate if the personnel were from the FDNY or the NYPD. If the personnel were not from either of those two agencies, identify, if known, the agency or hospital the personnel were from.
70. Indicate, if known, what time any additional and/or subsequent emergency personnel arrived after the initial emergency personnel. Indicate if such additional personnel were from the FDNY or the NYPD. If the additional personnel were not from those two agencies, identify the agency or agencies the personnel were from. Indicate the names and ranks of any additional emergency personnel who arrived. Describe any actions taken, and treatment provided by additional emergency personnel on-scene, or, if applicable, en route to a hospital.
71. State whether a claim is made that the answering defendant ignored or misdiagnosed complaints, signs, or symptoms of the patient plaintiff.
 - (a) If such a claim is made, state specifically by name or description all complaints, signs, and symptoms that the answering defendant(s) ignored or misdiagnosed.
 - (b) State what injury is claimed as the result of the answering defendant ignoring or misdiagnosing the complaints, signs, and symptoms.
 - (c) State specifically at what point during treatment the complaints, signs, and symptoms were ignored or misdiagnosed.
 - (d) State what the misdiagnosis of the complaints, signs, and symptoms was.
72. Describe the treatment, if any, provided by each of the arriving emergency personnel. Indicate, with specific time(s) and location(s):
 - (a) if the patient was intubated.
 - (i) If it is claimed that intubation was improper, describe how and why the intubation was improper, and the affect such alleged improper intubation had on the patient's condition, illness, or injury.
 - (ii) If it is claimed that the patient should have been, but was not intubated, describe the affect such alleged lack of intubation had on the patient's condition, illness, or injury.
 - (iii) If it is claimed that there was a delay in the patient being intubated, state the length of the delay, and explain the

affect such alleged delay had on the patient's condition, illness, or injury.

- (b) if an intravenous line was started.
 - (i) If it is claimed that an intravenous line was improper, describe how and why the intravenous line was improper, and the affect such alleged improper use had on the patient's condition, illness, or injury.
- (c) if a defibrillator was required or used.
 - (i) If it is claimed that a defibrillator was improperly used, describe how and why the use was improper, and the affect such alleged improper use had on the patient's condition, illness, or injury.
 - (ii) If it is claimed that a defibrillator should have been, but was not used, explain the affect such alleged lack of use had on the patient's condition, illness, or injury.
 - (iii) If it is claimed that there was a delay in using a defibrillator, state the length of delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.
- (d) if oxygen was required or given.
 - (i) if it is claimed that oxygen should have been given and was not, explain why oxygenation was required, as well as the affect that the alleged lack of oxygenation had on the patient's condition, illness, or injury.
 - (ii) if it is claimed that oxygenation was improper, explain how it was improper, and the affect that such alleged improper oxygenation had on the patient's condition, illness, or injury.
 - (iii) if it is claimed that there was a delay in oxygenation of the patient, state the length of delay, and the affect such alleged delay had on the patient's condition, illness, or injury.
- (e) if any medication was improperly administered, contraindicated, administered in an improper dosage or improper manner.
 - (i) State the name and description of each drug or medication improperly administered. Describe the manner in which the drug or medication was improperly administered. State the injury claimed as a result of the improperly administered drug or medication. State specifically at what point the drugs were administered improperly.

- (ii) State the name and description of each drug or medication administered in an improper dosage. Indicate what the improper dosage was. State the injury claimed as a result of the improper dosage. State specifically at what point during treatment the drugs were administered in an improper dosage.
 - (iii) State the name and description of each drug or medication claimed to be contraindicated. State in what way it is claimed that each such drug or medication was contraindicated. State the injuries claimed as a result of the administering of the contraindicated drug or medication. State specifically at what point during treatment the contraindicated drug or medication was administered.
- 73. Indicate if the plaintiff was transported to a hospital. Specify who transported the plaintiff to the hospital. Indicate if the plaintiff requested to be taken to a specific hospital. Identify the hospital to which the plaintiff was taken. Indicate what time the plaintiff was transported from the scene to the hospital and with whom if anyone she was accompanied by.
- 74. If it is claimed that emergency personnel lacked equipment to adequately provide aid, describe the equipment alleged to have been missing, and why such equipment is believed to have been missing. Describe how the alleged lack of equipment affected the patient's condition, injury, or illness.
- 75. State whether a claim is made as to defective equipment.
 - (a) If such a claim is made, identify the equipment and state the nature of the defect.
 - (b) If notice of such a defect is a prerequisite to liability, state whether actual or constructive notice is claimed.
 - (c) If constructive notice is claimed, state how long the condition existed.
- 76. State separately the acts or omissions constituting the alleged negligence and/or medical malpractice of each of the named defendants.
- 77. State the manner in which it is claimed the alleged injury arose.
- 78. State separately the acts of each of the named defendants constituting the intentional wrongs claimed, if any.
- 79. State the names of the employee(s) or agents of the answering defendant who are alleged to have committed the acts set forth in the paragraphs above.

80. If it is claimed that the answering defendant violated any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes, ordinances, rules or regulations alleged to have been violated by the answering defendant, as well as any statute, ordinance, rule, order, requirement or regulation claimed to have been violated by each of the named defendants.
81. State all injuries claimed as the result of the alleged negligence of the answering defendant herein, and state specifically which of the above injuries are claimed to be permanent in nature.
82. For actions other than for wrongful death, state the length of time the plaintiff was confined to each of the following by virtue of the acts or omissions of the answering defendant(s) herein.
- (a) Hospital, listing separately each period of hospitalization with the name and address of each hospital.
 - (b) Home.
 - (c) Bed.
83. Set forth the amount claimed as special damages for:
- (a) Physician(s) services;
 - (b) Nurses services;
 - (c) Hospital expenses;
 - (d) Drugs and medical supplies and/or equipment;
 - (e) X-rays and diagnostic tests;
 - (f) Rehabilitative and/or therapy services;
 - (g) Home health services;
 - (h) Any other expenses claimed.
84. For each of the foregoing elements of damages please state the name and address(es) of the provider(s), pharmacies, the dates of treatment and/or dates of use and list of prescriptions/medications filled. If any of the foregoing elements of damages have been repaid to the plaintiff or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff.
85. Set forth:
- (a) Occupation of plaintiff at the time of the occurrence;
 - (b) Whether plaintiff was self-employed, and, if so, state the address of her place of employment and the nature of the business or occupation in which she was engaged immediately prior to the occurrence.
 - (c) Name and address of plaintiff's employer, if any;
 - (d) Average weekly, monthly and/or annual gross earnings;
 - (e) State separately, the length of time totally and/or partially disabled;
 - (f) Amount claimed for lost earnings, if any;
 - (g) Number of days lost from work;
 - (h) Number of days lost from school;
 - (i) Name and address of school attended by plaintiff at the time of the date of accident.
86. Provide plaintiff's present residence address and plaintiff's residence address at time of the occurrence.

87. List all other names used by plaintiff.
88. List plaintiff's date of birth and social security number.

DEMAND FOR DISCOVERY & INSPECTION

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand you are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

GENERAL DEMANDS

1. If the City of New York is a named defendant, please identify the agency(s) involved.
2. For each person you believe may have been a witness to the incident which caused an injury, state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
3. For each person you believe may have been a witness to the condition which allegedly caused an injury, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
4. For each person you believe may be a witness to an injury alleged in this lawsuit, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
5. For each expert witness whom you expect to call at trial, please state the (a) name of the expert; (b) business address of the expert; (c) qualifications of the expert; (d) curriculum vitae of the expert; (e) subject matter in reasonable detail that the expert is expected to testify; (f) substance of the facts and opinions on which each expert is expected to testify; and (g) a summary of the grounds for each opinion.
6. If any sum has been paid or promised to plaintiff(s) by any person claimed to be liable (within the meaning of § 15-108, General Obligations Law) for any of the injuries (or damages) alleged in the complaint, please set forth the name(s) and address(es) of the person(s), corporation(s), insurance company(s), or other entity(s) making such payment or promise and state the amount(s) which have been, or will be, with reasonable certainty received by plaintiff(s).
7. For each person you believe may have provided an oral or written statement about the incident, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
8. Furnish a copy of each document you believe may have been prepared by the answering defendant(s) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you

intend to use for any purpose in this litigation, including any statement made by any person identified in response to Item 6 above, and any note, memorandum or recording of any oral statement.

9. Furnish the sum and substance of any unrecorded oral statement you believe may have been given by each defendant (or employee, or former employee, of a defendant) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation.

10. Provide a copy of any (a) any insurance claim arising out of the incident alleged in this lawsuit; (b) any workers' compensation claim arising out of the incident alleged in this lawsuit; (c) any pension claim arising out of the incident alleged in this lawsuit; (d) any no-fault claim arising out of the incident alleged in this lawsuit; and (e) any other claim seeking redress for the incident alleged in the lawsuit.

11. Furnish a copy of any Freedom of Information Law request made to the answering defendant(s) and any response thereto, which you intend to use for any purpose in this litigation.

12. Furnish copies of any subpoenas served on any party, or any other individual or entity concerning this litigation.

13. Provide a copy of any transcript of testimony involving the incident alleged in the lawsuit (including (but not limited to) any examinations under oath, transcript or materials related to a Department of Motor Vehicle hearing, departmental hearing, and criminal proceeding).

14. Provide a signed copy of any hearing held pursuant to General Municipal Law § 50-h.

15. Please furnish a copy of each accident report, if any, made by, or on behalf of your client(s) concerning the occurrence of the injuries (or damages) alleged in the complaint.

16. Furnish a copy of any written notice, Big Apple Corporation map or other document giving notice of an allegedly defective or dangerous condition at the place where the injuries (or damages) alleged in the complaint occurred, prior to the occurrence thereof.

17. Furnish a reasonably clear copy of each photograph and or each video depicting the place where the injuries (or damages) alleged in the complaint occurred.

18. If plaintiff intends on utilizing any physical evidence at trial, please (a) provide a photograph of the physical evidence; and (b) make the physical evidence available for inspection.

19. In any action for injuries, including death, allegedly sustained by a spouse, child or other family member of a plaintiff, please furnish a copy of each marriage, birth and death certificate, as applicable.

20. In any representative action, please furnish a copy of the court order appointing the representative.

21. With respect to any earnings (or profits) claimed to have been lost as a result of the injuries (or damages) alleged in the complaint, please furnish a copy of each state and each federal income tax return including any W-2 statements, together with attachments, filed by, or on behalf of, plaintiff(s) for the year in which the said injuries (or damages) occurred and for each of the two preceding years, and for all years in which continuing losses are claimed.

22. In any action for wrongful death, please furnish a copy of the federal estate tax return filed for decedent's estate, and a copy of each state and each federal income tax return, including W-2 statements, filed by, or on behalf of the decedent for each of the two years before death.

23. Furnish a copy of each medical provider's report and medical bills, including pharmaceutical bills and bills for durable medical goods, with ICD-codes, referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **after** the occurrence of the injuries alleged in the complaint, or any treatment reasonably related thereto.

24. Furnish a copy of each medical provider's report referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **before** the occurrence of the injuries alleged in the complaint and reasonably related thereto.

25. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to (a) obtain each document

referring to any treatment of plaintiff(s) (including psychological treatment) for any injury alleged in this lawsuit; and (b) speak with any medical provider which provided any treatment to plaintiff(s). This demand includes treatment which is reasonably related to any injury alleged in this lawsuit. Please utilize form located New York State Unified Court System webpage located at www.nycourts.gov.

26. In any action by or on behalf of a student, please furnish duly executed authorizations permitting the Office of the Corporation Counsel to examine and copy the school, attendance and health records of the plaintiff(s) on file at the school(s) attended at the time of the occurrence and thereafter.

27. If plaintiff received workers' compensation benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the workers' compensation file; and (b) a copy of the worker's compensation file.

28. If plaintiff received no fault benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the no fault file; (b) a copy of the no fault file.

29. If plaintiff alleges economic loss, please provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records on file at the last employer.

30. State whether plaintiff is currently receiving, has applied for or is eligible for Social Security Disability payments. If plaintiff is currently receiving Social Security Disability payments, please identify when eligibility began and identify his/her SSDI number and the medical condition on which basis coverage was awarded. If plaintiff has received Social Security Disability payments at any point in the past, please identify the period or periods of time when plaintiff was eligible and identify his/her SSDI number and medical condition on which basis coverage was awarded.

31. If, in your response to the prior request, you indicated plaintiff has ever applied for or been eligible for Social Security Disability payments, please provide (a) copies of all social security disability records, including any determination and decision; and (b) a duly executed authorization (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain Social Security disability records from the Social Security Administration.

32. Identify all health care benefits, including but not limited to private health insurance carriers and public health care programs (e.g., Medicaid), plaintiff has received or which plaintiff will become eligible to receive as a result of injuries allegedly related to the subject accident/incident and provide copies of plaintiff's identification cards for all identified health care programs.

33. State whether plaintiff is or has ever been a Medicare recipient and, if so, provide plaintiff's Medicare Health Insurance Claim Number ("HICN") and a copy of his/her HICN card. If no card is available, please provide the date eligibility began. If plaintiff has received Medicare coverage at some point in the past and no HICN card is available, please identify the period or periods of time when plaintiff was eligible.

34. Furnish the name and address of the attorney(s) who have appeared in this action.

35. Furnish the names of the parties, the court, and the index number of each other action, if any, commenced by or on behalf of plaintiff(s) concerning any of the injuries (or damages) alleged in the complaint.

DEMANDS FOR COLLATERAL SOURCE INFORMATION

36. Entities that have provided payments for medical treatment. Identify by name, address and policy number, any source that has provided payments to plaintiff, or to plaintiff's spouse, domestic partner, or parent for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

37. Entities that have provided payments on account of disability. Identify by name, address and policy number, any source that has provided payments to plaintiff, by reason of plaintiff's partial or total

inability to work. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

38. Entities from which plaintiff is eligible to receive medical coverage. Identify by name, address and policy number, any source from which plaintiff is eligible to receive medical coverage for the injuries received in this accident whether or not plaintiff has actually applied for such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

39. Entities from which plaintiff is eligible to receive disability benefits. Identify any source by name, address and policy number, any source from which plaintiff would be eligible to receive payments in the event of plaintiff's partial or total inability to work, whether or not plaintiff has applied for or received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

40. Entities to which plaintiff has applied for medical benefits. Identify any source by name, address and policy number, any source to which plaintiff, or plaintiff's spouse, domestic partner, or parent, has submitted claims or applied for benefits for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident whether or not such benefits were received. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

41. Entities to which an application for disability benefits has been made. Identify any source by name, address and policy number, any entity to which an application has been made for payments by reason of partial or total inability to work, whether or not plaintiff has received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

42. Entities to which plaintiff has paid premiums to obtain medical or disability coverage. Identify any entity by name, address and policy number to which plaintiff, or plaintiff's spouse, domestic partner, or parent paid premiums to obtain medical or disability coverage for two years prior to the incident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for proof of such payment of premiums.

ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) allege police misconduct, the following items are additionally demanded:

43. Provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records pertaining to all criminal proceedings related to the incident alleged in this lawsuit. Please provide a separate authorization for each entity which maintains these records (including (but not limited to) the Office of the District Attorney, the New York City Police Department, and criminal court).

44. Provide copies of records pertaining to all criminal proceedings related to the incident alleged in the lawsuit, including (but not limited to) transcripts, certificates of disposition, police records, criminal records, District Attorney records, and photographs, including copies of any photographs of the plaintiff(s) taken by the defendant(s) at the time of the arrest.

45. If entitlement to reimbursement for legal fees is claimed, please provide copies of any bills incurred.

46. Provide the name, address, and phone number of any attorney representing plaintiff(s) concerning the criminal charges related to the incident alleged in this lawsuit.

ALLEGED PROPERTY DAMAGE

Where applicable, in addition to the foregoing, if plaintiff(s) allege property damage, the following items are additionally demanded:

47. For each item of property damaged:

(a) Photograph(s) and or videotapes depicting the items alleged to have been damaged, prior to damage;

(b) Photograph(s) and or videotapes depicting items alleged to have been damaged, subsequent to damage;

(c) Original purchase receipts, cancelled checks, and/or charge slips for items alleged to have been damaged;

(d) Appraisals, warranties, etc. pertaining to the items alleged to have been damaged.

48. True and accurate copies of any and all insurance agreements held by plaintiff on day of said incident and pertaining to property damage and/or loss.

49. True and accurate copies of any and all notices of loss or claims made on the above policies pertaining to the damage alleged in the complaint.

ALLEGED NEGLIGENT SUPERVISION

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent supervision, the following items are additionally demanded:

50. For every individual who allegedly failed to provide adequate supervision, please state (a) the name of the individual; (b) the address and phone number of the individual; (c) the name of the entity who employs the individual; (d) the title of the individual; (e) the date that the individual failed to provide adequate supervision; and (f) the time that the individual failed to provide adequate supervision. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each individual. This demand includes all individuals, even if employed by any of the parties.

51. Identify the name or names of the person(s) it is alleged received inadequate supervision.

52. Provide the name(s) of any person(s) plaintiff will claim assaulted him/her with reference to the claim being asserted against the answering defendant(s).

53. If the person(s) identified in above have not yet appeared in this action, please provide copies of all documents, including but not limited to, affidavits of service and correspondence, which reflect any attempt to obtain jurisdiction over the individual(s).

54. Provide copies of any documents filed with or against any governmental agency(s) concerning the actions of any person(s) whom plaintiff(s) alleges caused the damages alleged in the complaint, including any criminal complaints filed and the disposition thereof.

55. For each individual you believe may have provided an oral or written statement concerning the supervision of any person involved in the incident, state (a) the name of any individual who provided a statement; and (b) the address and phone number of any individual who provided a statement. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have provided a statement. This demand includes all individuals, even if employed by any of the parties.

ALLEGED PREMISES LIABILITY

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) failed to properly maintain a premises, the following items are additionally demanded:

56. If it is alleged that the answering defendant owned the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) ownership of the premises.

57. If it is alleged that the answering defendant(s) leased the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) tenancy.

58. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

59. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

MOTOR VEHICLE ACCIDENTS

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

60. Provide a copy of the title for the vehicle being operated by plaintiff.
61. Provide a copy of plaintiff's drivers license.
62. Provide a copy of the registration for the vehicle in which plaintiff(s) was located when the incident occurred.
63. Provide a copy of any (a) repair record (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident; and (b) maintenance records (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident.
64. Provide a copy of any recall notice received regarding the vehicle in which plaintiff(s) was located when the incident occurred.
65. Provide photographs taken of the vehicle(s) involved in the accident taken:
 - (a) Before the accident;
 - (b) After the accident.
66. Provide any estimates to repair the vehicle involved in this accident.
67. Provide any records or receipts for towing of the vehicle involved in this accident.
68. Provide a copy of the MV-104 filed by, or on behalf of, the plaintiff as a result of this accident.
69. Provide a copy of any accident report provided to any insurance company regarding this accident.
70. Provide any notes or memorandum describing this accident.
71. Provide a copy of any transcript of any Department of Motor Vehicle hearing taken with respect to this accident.
72. Provide the date, location, name of defendant or respondent, and name of Judicial Hearing Officer who presided over, any Department of Motor Vehicle hearing taken with respect to this accident.
73. Provide a copy of any insurance policy (including any umbrella or excess policy) covering the vehicle in which plaintiff(s) was located at the time of the incident.
74. Provide a copy of the no-fault file pertaining to plaintiff(s).

ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) defamed plaintiff(s), the following items are additionally demanded:

75. Provide a copy of any writing, publication (including any re-publications), and broadcast containing the alleged defamatory statement(s).
76. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate the untruthfulness of the alleged defamatory statement(s).
77. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate defendant(s) malice or reckless disregard for the truth.
78. Provide the name of any individual who you believe has information concerning the untruthfulness of the alleged defamatory statement(s) or whether the statements were made with malice or reckless disregard for the truth, stating (a) the name of the individual(s); and (b) the address and phone number of the individuals. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person. This demand includes all individuals, even if employed by any of the parties.

79. Provide copies of any documents, bills, invoices or writings which plaintiff(s) intend to use to prove any alleged special damages.

ALLEGED LEAD-BASED PAINT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges injuries as a result of exposure to lead-based paint, the following items are additionally demanded:

80. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain birth and prenatal records of plaintiff(s); the authorization must include the name and address of the hospital or facility where plaintiff(s) was born and the date of birth of plaintiff(s).

81. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of any medical provider who provided prenatal care; the authorization must include the name and addresses of each medical provider and the dates of treatment.

82. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of all (a) health providers who have rendered pediatric care (including treatment for any of the injuries currently alleged) to plaintiff(s); and (b) health care providers that screened blood of plaintiff(s). The authorizations must contain the name and address of each medical provider as well as the dates of treatment or testing.

83. Provide duly executed authorizations enabling defendant(s) to obtain the records of any and all schools, and/or day care centers attended by the plaintiff(s) to date; the authorizations must include the name(s) and address(es) of the schools and the dates of attendance.

84. Provide the name and address of the academic institution most recently attended by the infant plaintiff's natural mother and a duly executed authorization allowing that institution to release its records to the defendant(s). If the infant plaintiff's mother is not the custodial parent, please provide the same information with respect to any adult acting as the infant plaintiff's guardian or caretaker.

85. If the infant plaintiff has any siblings, please provide the following for each such sibling:

(a) Name, date of birth and current address;

(b) Names and addresses of any and all schools, pre-schools or day-care centers attended, and duly executed authorizations allowing those institutions to release their records to the defendant(s).

86. For each infant plaintiff, provide the name, date of birth and last known address of the biological father.

87. Provide copies of any photographs, movies, or videotapes depicting the premises.

88. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

89. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S))

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand, all other parties (excluding plaintiff(s)) are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such

information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

GENERAL DEMANDS TO PARTIES (EXCLUDING PLAINTIFF(S))

1. Provide copies of complete contents of insurance policies in effect on the date of occurrence, including all endorsements, terms, and conditions, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.
2. Provide copies of all excess and umbrella insurance policies in effect on date of occurrence, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.
3. Provide copies of all certificates of insurance in effect on the date of occurrence, including but not limited to, any which name this defendant, or any of its agencies, as an insured or as an additionally insured.
4. Copies of all contracts, sub-contracts, leases, franchises, and indemnification agreements in effect on date of occurrence.
5. Provide copies of any documents, records or photographs relating to any repairs made to the location, premises or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.
6. Provide copies of any documents, records or logs relating to any maintenance (including cleaning, altering, and shoveling) performed at, or to, the location, premises, or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.
7. Copies of all accident reports kept in the regular course of business regarding the occurrence complained of in plaintiff's complaint.
8. Provide a copy of plaintiff(s) Bill of Particulars and any discovery items previously exchanged, (including but not limited to; deposition transcripts and reports of physical examinations conducted of the plaintiff), and served upon or by defendant(s) or third-party defendant(s).

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING ALLEGED ROADWAY, SIDEWALK, AND CONSTRUCTION ACCIDENTS

Where applicable, in addition to the foregoing, in any action alleging defective roadway, sidewalk, or construction, the following items are additionally demanded:

9. Provide copies of all applications for permits, cut forms, opening tickets, work tickets, and paving orders.
10. Provide copies of all drawings, schematics, blueprints, strip maps, diagrams of underground facilities and of street hardware, including manhole covers, castings, and gratings.
11. Provide copies of all daily, weekly, and/or monthly progress reports, job progress photographs, and photographs of roadway color coding for entire period of construction.
12. Provide copies of all maintenance, inspection and repair records for the entire period of construction.

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING MOTOR VEHICLE ACCIDENTS

Where applicable, in addition to the foregoing, in any action in which it is alleged that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

13. Provide a copy of the title for any vehicle involved in the incident.
14. Provide a copy of the driver's license for the applicable driver involved in the incident.
15. Provide a copy of the registration for the applicable vehicle involved in the incident.

16. Provide the following records for the applicable vehicle involved in the incident for a two-year period prior to the alleged incident: (a) repair records (including logs, bills, and receipts); and (b) maintenance records (including logs, bills, and receipts).

17. Provide a copy of any recall notice received regarding any vehicle involved in the incident.

18. Provide photographs of the vehicle involved in the accident taken:
(a) before the accident;
(b) after the accident.

19. Provide any estimates to repair the vehicle involved in this accident.

20. Provide any records or receipts for towing of the vehicle involved in this accident.

21. Provide a copy of any MV-104 related to the incident.

22. Provide a copy of any Department of Motor Vehicle hearing related to the incident; and provide (a) the date, location, name of the parties, and name of Judicial Hearing Officer who presided over any Department of Motor Vehicle hearing.

23. Provide a copy of any accident report provided to any insurance company regarding this accident.

24. Provide any notes or memorandum describing this accident.

25. Provide a copy of any insurance policy, including any umbrella or excess policies, covering the vehicle defendant or third-party plaintiff was operating at the time of this accident.

26. Provide a copy of any no-fault file pertaining to plaintiff(s) related to the incident.

**ADDITIONAL DEMANDS TO ANY THIRD-PARTY PLAINTIFF WHO HAS AN ACTION
AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand, any third party-plaintiff who has an action against a party represented by the Corporation Counsel, it is requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control; but, in any event, no later than forty-five days before trial.

27. Provide a copy of any document (with all attachments) previously exchanged by the parties (including pleadings, bills of particulars, deposition transcripts, medical records, correspondence, motions, discovery responses, etc.).

28. Provide a copy of all court orders and stipulations issued in the litigation.

**DEMAND FOR VERIFIED BILL OF PARTICULARS TO ANY THIRD-PARTY PLAINTIFF WHO
HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

PLEASE TAKE NOTICE that pursuant to CPLR 3041, any third party-plaintiff who has an action against a party represented by the Corporation Counsel is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. State separately the alleged negligence of any party represented by the Corporation Counsel, if applicable.

2. State separately the alleged intentional wrongs committed by any party represented by the Corporation Counsel, if applicable.

3. State the name of any employee or agent of any party represented by the Corporation Counsel alleged to have committed any act which contributed to an injury.
4. State (a) whether any repair was made to the accident location prior to the happening of the alleged accident; (b) when any repair was made; (c) where any repair was made; (d) who made any repair; and (e) what repairs were made.
5. State (a) whether any party represented by the Corporation Counsel had notice of an alleged defective condition which contributed to an injury; (b) which party had notice; (c) whether the party had actual notice of a condition; (d) whether the party had constructive notice of a condition; and (e) whether it is alleged that the party created the condition.
6. If actual notice is claimed, please state (a) the name of any individual(s) who had actual notice; (b) the job title of any individual(s) who had actual notice; (c) the employer of any individual(s) who had actual notice; and (d) the address and phone number of any individual(s) who had actual notice. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have had actual notice. This demand includes all individuals, even if employed by any of the parties.
7. If constructive notice of a condition is claimed, please state the alleged condition and the length of time said condition is alleged to have existed prior to the happening of the alleged incident.
8. If third-party plaintiff(s) claims the violation of any statute, ordinance, rule, order, regulation, or directive, please state separately all such statutes, ordinances, rules, regulations, and directives alleged to have been violated by any party represented by the Corporation Counsel.
9. If applicable, please state whether any party represented by the Corporation Counsel was a party to a contract; and please state the:
 - (c) parties to the contract;
 - (d) contract number.
10. If applicable, please state any item of construction, excavation, and demolition work which was not so constructed, shored, equipped, guarded, arranged, operated, and conducted as to provide reasonable and adequate safety; and please state (a) the manner in which the work caused an alleged injury; and (b) if applicable, the control exercised by any party represented by the Corporation Counsel and the exact manner in which said control was exercised.

Dated: New York, New York
October ____, 2015

Yours, etc.
ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants THE CITY OF NEW
YORK, THE CITY OF NEW YORK S/H/A NEW
YORK CITY POLICE DEPARTMENT,
100 Church Street
New York, New York 10007

TO:

GARY RAWLINS
the attorney(s) for Plaintiff(s)
300 CADMAN PLAZA WEST
BROOKLYN, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ROSALINO RAMOS,

Plaintiff(s),

NOTICE OF DEPOSITION

-against-

Index #: 304102-2015

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD NO. 26984,
OFFICER JASON RUBENSTEIN SHIELD NO. 24550,
OFFICER DANIEL MENSING AND SERGEANT RICHARD
JONES SHIELD NO. 04142,

Law Dept. #: 2015-044551

Defendant(s).

----- X
PLEASE TAKE NOTICE, that pursuant to Article 31 of the Civil Practice Law and Rules,
the undersigned will take by deposition the testimony of all adverse parties at a time and date to be mutually
agreed upon at the pre-calendar conference.

PLEASE TAKE FURTHER NOTICE, that at the time of the taking of the testimony the
said adverse parties shall produce all books and papers in their possession relating to the issues upon which
said parties are to be examined and upon your failure to so produce them, parol and/or secondary evidence
thereof and of the contents of the same will be required.

Yours, etc.
ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants THE CITY OF NEW
YORK, THE CITY OF NEW YORK S/H/A NEW
YORK CITY POLICE DEPARTMENT,
100 Church Street
New York, New York 10007

TO:
GARY RAWLINS
the attorney(s) for Plaintiff(s)
300 CADMAN PLAZA WEST
BROOKLYN, NY 11201

VERIFICATION

Re: ROSALINO RAMOS; LD #: 2015-044551

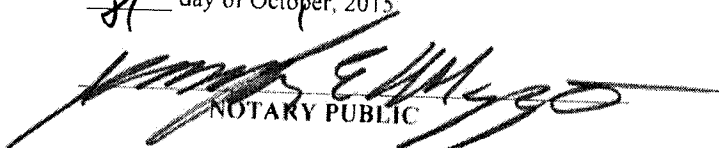
Ainsley Harris being duly sworn deposes and says that: deponent is an employee of the Office of the Corporation Counsel; that deponent has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to deponent's own knowledge, except as to the matters alleged upon information and belief, which deponent believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof.

Dated: New York, New York
October 27, 2015



AINSLEY HARRIS

Sworn to before me this
21 day of October, 2015



NOTARY PUBLIC

JENNIFER E. MAZZIO
Commissioner of Deeds
City of New York No. 3-7419
Certificate Filed in New York County
Commission Expires May 1, 2017

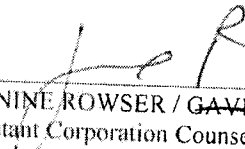
STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars and discovery.

Dated: New York, New York
October 27, 2015

By:



JANNINE ROWSER / GAVIN A. MCCANDLISH
Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

Please do not send correspondence to the above named individual unless otherwise directed. See Answer back for additional contact information.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROSALINO RAMOS,

Plaintiff(s),

AFFIDAVIT OF SERVICE

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD NO.,
26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550,
OFFICER DANIEL MENSING AND SERGEANT RICHARD
JONES SHIELD NO.: 04142,

Index #: 304102-2015

Law Dept. #: 2015-044551

Defendant(s).

STATE OF NEW YORK)

COUNTY OF NEW YORK)

: ss.:
)

Sulzer Ety

, being duly sworn deposes and says that:

1. The deponent is not a party to the action and is 18 years of age or older.

2. On 10/21/2015 the deponent served the annexed ANSWER AND

DEMANDS upon the following person or persons:

ROSALINO RAMOS
by mailing a copy to his/her/their attorney(s),
GARY RAWLINS
at 300 CADMAN PLAZA WEST
BROOKLYN, NY 11201

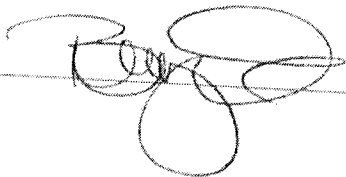
being the address designated by said attorney(s) for that purpose by depositing the same in a first class,
postpaid, properly addressed wrapper, in a post office or official depository under the exclusive care and
custody of the United States Postal Service within the State of New York pursuant to CPLR 2103(b)(2).

Sworn to before me this

21 day of Oct, 20 15

Sulzer Ety
Sulzer Ety

BELINDA YEE
Notary Public, State of New York
No. 01YES116477
Qualified in New York County
Commission Expires: 10/04/2016



Index #: 304102-2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROSALINO RAMOS,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER PETER WONG SHIELD NO.: 26984,
OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER
DANIEL MENSING AND SERGEANT RICHARD JONES SHIELD
NO.: 04142,

Defendant(s).

ANSWER AND DEMANDS

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF
NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT,

100 Church Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)
(212) 356-3144

Pleadings Unit (212) 356-3235 (pleadings matters only)

All Other Matters (Inquire by county of venue)

Bronx Office: (718) 503-5030 (EBT's - 5045)

Brooklyn Office: (718) 724-5200 (EBT's-5226)

Manhattan Office: (212) 356-2725 (EBT's-2791)

Queens Office: (718) 558-2100 (EBT's - 2105)

Staten Island Office: (718) 876-3600 (EBT's-3603)

Please refer to the following Law Dept. #: **2015-044551**

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.